# Policy certificate

## Insurance effected through the Coverholder:

CFC Underwriting Limited
11th Floor, 8 Bishopsgate
London EC2N 4BQ
United Kingdom

**"This insurance has been placed with an insurer that is not licensed by the state of Michigan. In case of insolvency, payment of claims may not be guaranteed."**

## PLEASE NOTE – This notice contains important information. PLEASE READ CAREFULLY.

This Certificate is issued by the Coverholder in accordance with the authorization granted to the Coverholder under the Binding Authority Agreement with the Unique Market Reference stated within this Policy. This Policy comprises a Certificate, the Declarations page, Wording and all other provisions and conditions attached and any endorsements issued.

The liability of an insurer under this contract is several and not joint with other insurers party to this contract. An insurer is liable only for the proportion of liability it has underwritten. An insurer is not jointly liable for the proportion of liability underwritten by any other insurer. Nor is an insurer otherwise responsible for any liability of any other insurer that may underwrite this contract.

The proportion of liability under this contract underwritten by an insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown in this Policy.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

In Witness whereof this Certificate has been signed by:

Authorized Official

Please examine this document carefully. If it does not meet your needs, please contact your broker immediately. In all communications the policy number appearing overleaf should be quoted.


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# HOW TO COMPLAIN - TEXAS

## Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company or HMO first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company or HMO. If you don't, you may lose your right to appeal.

**Underwritten by certain underwriters at Lloyd's and other insurers**
To get information or file a complaint with your insurance company or HMO:

| | |
|---|---|
| **Call:** | **CFC Underwriting Limited at +44 (0) 207 220 8500** |
| Email: | complaints@cfc.com |
| Mail: | Chief Executive Officer<br>CFC Underwriting Limited<br>11th Floor, 8 Bishopsgate<br>London EC2N 4BQ<br>United Kingdom |

**The Texas Department of Insurance**
To get help with an insurance question or file a complaint with the state:

| | |
|---|---|
| Call with a question: | 1-800-252-3439 |
| File a complaint: | www.tdi.texas.gov |
| Email: | ConsumerProtection@tdi.texas.gov |
| Mail: | Consumer Protection, MC: CO-CP, Texas Department of Insurance, PO Box 12030, Austin, TX 78711-2030 |


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## DECLARATIONS

| | |
|---|---|
| POLICY NUMBER: | ESO0740775413 |
| UNIQUE MARKET REFERENCES: | B087525C9N5051 |
| THE INSURED: | Ebusiness Strategies LLC |
| ADDRESS: | 18318 Fern Trail Court<br>Houston, TX 77084<br>US |
| THE UNDERWRITERS: | Underwritten by certain underwriters at Lloyd's and other insurers, led as stated in the Lead Insurer Information page |
| THE INCEPTION DATE: | 00:01 Local Standard Time on 02 Apr 2026 |
| THE EXPIRY DATE: | 00:01 Local Standard Time on 02 Apr 2027 |
| TOTAL PAYABLE: | USD15,500.00 |
| Premium breakdown: | |
| Premium: | USD15,000.00 |
| Policy Administration Fee: | USD500.00 |
| TECHNOLOGY SERVICES: | IT consulting |
| CHOICE OF LAW: | Texas |
| SERVICE OF SUIT: | Mendes & Mount LLP<br>750 7th Avenue<br>New York, NY 10019 |
| LEGAL ACTION: | Worldwide |
| TERRITORIAL SCOPE: | Worldwide |
| US CLASSIFICATION: | Surplus Lines |
| SURPLUS LINES BROKER: | RSG Specialty, LLC<br>Licence No. : 1624899<br>155 N. Wacker Drive Suite 4000<br>Chicago<br>60606 |
| RETROACTIVE DATE(S): | |
| REPUTATIONAL HARM PERIOD: | 12 months |
| INDEMNITY PERIOD (SYSTEM DAMAGE AND BUSINESS INTERRUPTION cover only): | 12 months |
| TIME FRANCHISE: | 8 hours |
| OPTIONAL EXTENDED REPORTING PERIOD: | 12 months for 100% of applicable annualized premium |
| APPROVED CLAIMS PANEL PROVIDERS: | CFC Response |
| CLAIMS MANAGER: | CFC Underwriting Limited<br>Please report all new claims to: |


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| | |
|---|---|
| | newclaims@cfc.com |
| CYBER INCIDENT RESPONSE LINE: | In the event of an actual or suspected cyber incident please call our Cyber Incident Response Team on the toll free 24-hour hotline number: 1 844-677-4155 or email cyberclaims@cfc.com |
| WORDING: | Technology v5.0 |
| ENDORSEMENTS: | Complaints Notice (Texas)<br>U.S. Terrorism Risk Insurance Act of 2002 As Amended<br>Not Purchased Clause<br>Texas Surplus Lines Clause<br>Professional Services Exclusion Clause (For language)<br>RT Specialty Special Amendatory Clause |

| | |
|---|---|
| Policy Premium | $15,000.00 |
| Surplus Lines Tax | $375.00 |
| Stamping Fee | $0.00 |
| Policy Fee | $525.00 |
| Carrier Policy Fee | $500.00 |
| | $0.00 |
| | $0.00 |
| Total | **$16,400.00** |


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# DECLARATIONS

## INSURING CLAUSE 1: PROFESSIONAL LIABILITY

NO COVER GIVEN

## INSURING CLAUSE 2: NETWORK SECURITY & PRIVACY LIABILITY

### ALL SECTIONS COMBINED

| | | |
|---|---|---|
| Aggregate limit of liability: | USD5,000,000 | in the aggregate |

### SECTION A: NETWORK SECURITY LIABILITY

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim, including **costs and expenses** |
| Deductible: | USD5,000 | each and every claim, including **costs and expenses** |

### SECTION B: PRIVACY LIABILITY

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim, including **costs and expenses** |
| Deductible: | USD5,000 | each and every claim, including **costs and expenses** |

### SECTION C: MANAGEMENT LIABILITY

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim, including **costs and expenses** |
| Deductible: | USD5,000 | each and every claim, including **costs and expenses** |

### SECTION D: REGULATORY FINES, PENALTIES AND INVESTIGATION COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim, including **costs and expenses** |
| Deductible: | USD5,000 | each and every claim, including **costs and expenses** |

### SECTION E: PCI FINES, PENALTIES AND ASSESSMENTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim, including **costs and expenses** |
| Deductible: | USD5,000 | each and every claim, including **costs and expenses** |

### SECTION F: CONTINGENT BODILY INJURY

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim, including **costs and expenses** |
| Deductible: | USD5,000 | each and every claim, including **costs and expenses** |


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## INSURING CLAUSE 3: CYBER INCIDENT RESPONSE

### ALL SECTIONS COMBINED

| | | |
|---|---|---|
| Aggregate limit of liability: | USD5,000,000 | in the aggregate |

### SECTION A: INCIDENT RESPONSE COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD0 | each and every claim |

### SECTION B: LEGAL AND REGULATORY COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION C: IT SECURITY AND FORENSIC COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION D: CRISIS COMMUNICATION COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION E: PRIVACY BREACH MANAGEMENT COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION F: THIRD PARTY PRIVACY BREACH MANAGEMENT COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION G: POST BREACH REMEDIATION COSTS

| | | |
|---|---|---|
| Limit of liability: | USD50,000 | each and every claim, subject to a maximum of 10% of all sums **we** have paid as a direct result of the **cyber event** |
| Deductible: | USD5,000 | each and every claim |


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## INSURING CLAUSE 4: CYBER CRIME

### SECTION A: FUNDS TRANSFER FRAUD

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION B: INVOICE MANIPULATION

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION C: NEW VENDOR FRAUD

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION D: PHYSICAL GOODS FRAUD

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION E: THEFT OF PERSONAL FUNDS

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION F: CORPORATE IDENTITY THEFT

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION G: THEFT OF FUNDS HELD IN ESCROW

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION H: THEFT OF CLIENT FUNDS

| | | |
|---|---|---|
| Limit of liability: | USD50,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |


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### SECTION I: CUSTOMER PAYMENT FRAUD

| | | |
|---|---|---|
| Limit of liability: | USD50,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION J: TELEPHONE HACKING

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION K: UNAUTHORIZED USE OF COMPUTER RESOURCES

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

## INSURING CLAUSE 5: CYBER EXTORTION

| | | |
|---|---|---|
| Aggregate limit of liability: | USD5,000,000 | in the aggregate |
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

## INSURING CLAUSE 6: SYSTEM DAMAGE AND BUSINESS INTERRUPTION

### ALL SECTIONS COMBINED

| | | |
|---|---|---|
| Aggregate limit of liability: | USD5,000,000 | in the aggregate |

### SECTION A: SYSTEM DAMAGE AND RECTIFICATION COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION B: HARDWARE REPLACEMENT COSTS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION C: INCOME LOSS AND EXTRA EXPENSE

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |


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### SECTION D: EMERGENCY AND ADDITIONAL OPERATIONAL CONTINUITY COSTS

| | | |
|---|---|---|
| Limit of liability: | USD50,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION E: VOLUNTARY AND REGULATORY SHUTDOWN

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION F: DEPENDENT BUSINESS INTERRUPTION

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION G: CONSEQUENTIAL REPUTATIONAL HARM

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION H: LOST OR MISSED BIDS

| | | |
|---|---|---|
| Limit of liability: | USD5,000,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |

### SECTION I: CLAIM PREPARATION COSTS

| | | |
|---|---|---|
| Limit of liability: | USD25,000 | each and every claim |
| Deductible: | USD0 | each and every claim |

## INSURING CLAUSE 7: COMMERCIAL GENERAL LIABILITY

NO COVER GIVEN

## INSURING CLAUSE 8: LOSS MITIGATION

NO COVER GIVEN

## INSURING CLAUSE 9: CRIMINAL REWARD COVER

| | | |
|---|---|---|
| Limit of liability: | USD100,000 | each and every claim |
| Deductible: | USD5,000 | each and every claim |


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## INSURING CLAUSE 10: REPUTATION AND BRAND PROTECTION

NO COVER GIVEN

## INSURING CLAUSE 11: COURT ATTENDANCE COSTS

| | | |
|---|---|---|
| Aggregate limit of liability: | USD100,000 | in the aggregate |
| Deductible: | USD0 | each and every claim |


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## OUR REGULATORY STATUS

CFC Underwriting Limited is authorised and regulated by the United Kingdom Financial Conduct Authority (FCA). CFC Underwriting Limited's Firm Reference Number at the FCA is 312848. These details may be checked by visiting the Financial Conduct Authority website at https://register.fca.org.uk/. Alternatively, the Financial Conduct Authority may be contacted on +44 (0)20 7066 1000.

We are covered by the Financial Services Compensation Scheme (FSCS). You may be entitled to compensation from the scheme if we cannot meet our obligations to you in respect of insurance policies that we have underwritten on behalf of insurers. This depends on the type of business and the circumstances of the claim. In respect of general insurance business the FSCS will cover 90% of the claim, without any upper limit and for compulsory classes of insurance, the FSCS will cover 100% of the claim, without any upper limit. Further information about compensation scheme arrangements is available from the FSCS.

## DATA PROTECTION NOTICE

We collect and use relevant information about you to provide you with your insurance cover or the insurance cover that benefits you and to meet our legal obligations. Where you provide us or your agent or broker with details about other people, you must provide this notice to them.

The information we collect and use includes details such as your name, address and contact details and any other information that we collect about you in connection with the insurance cover from which you benefit. This information may include more sensitive details such as information about your health and any criminal convictions you may have.

In certain circumstances, we may need your consent to process certain categories of information about you (including sensitive details such as information about your health and any criminal convictions you may have). Where we need your consent, we will ask you for it separately. You do not have to give your consent and you may withdraw your consent at any time. However, if you do not give your consent, or you withdraw your consent, this may affect our ability to provide the insurance cover from which you benefit and may prevent us from providing cover for you or handling your claims.

The way insurance works means that your information may be shared with, and used by, a number of third parties in the insurance sector for example, insurers, agents or brokers, reinsurers, loss adjusters, sub-contractors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases. We will only disclose your personal information in connection with the insurance cover that we provide and to the extent required or permitted by law.

We will process individual insured's details, as well as any other personal information you provide to us in respect of your insurance cover, in accordance with our privacy notice and applicable data protection laws.

To enable us to use individual insured's details in accordance with applicable data protection laws, we need you to provide those individuals with certain information about how we will use their details in connection with your insurance cover.

You agree to provide to each individual insured this notice, on or before the date that the individual becomes an individual insured under your insurance cover or, if earlier, the date that you first provide information about the individual to us.


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We are committed to using only the personal information we need to provide you with your insurance cover. To help us achieve this, you should only provide to us information about individual insureds that we ask for from time to time.

You have rights in relation to the information we hold about you, including the right to access your information. If you wish to exercise your rights, discuss how we use your information or request a copy of our full privacy notice, please contact us directly at dataprotection@cfc.com.

For more information about how we use your personal information please see our full privacy notice, which is available online on our website at:

http://www.cfc.com/privacy


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## OTHER COSTS, FEES AND CHARGES

A Policy Administration Fee may be charged by CFC Underwriting Limited for administration costs incurred by it for its role in the distribution of this policy. Any applicable Policy Administration Fee:

a. is separate from and in addition to the premium stated in the Declarations page; and

b. constitutes a separate agreement between the Insured stated in the Declarations page and CFC Underwriting Limited which will come into effect upon inception of the policy.

If a Policy Administration Fee is applicable then it will be deemed fully earned upon inception of this policy and it will not be refundable in the event this policy is cancelled in accordance with the terms and conditions of this policy


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## LEAD INSURER INFORMATION

| | |
|---|---|
| POLICY NUMBER: | ESO0740775413 |
| THE INSURED: | Ebusiness Strategies LLC |
| THE INCEPTION DATE: | 02 Apr 2026 |

This page provides the details of the lead insurer for the cover purchased under this Policy. These details are provided to you to confirm which syndicates are providing this cover and the security of this Policy.

| | |
|---|---|
| Coverage: | INSURING CLAUSE 2: NETWORK SECURITY & PRIVACY LIABILITY<br>INSURING CLAUSE 3: CYBER INCIDENT RESPONSE<br>INSURING CLAUSE 5: CYBER EXTORTION<br>INSURING CLAUSE 6: SYSTEM DAMAGE AND BUSINESS INTERRUPTION<br>INSURING CLAUSE 9: CRIMINAL REWARD COVER |
| UMR: | B087525C9N5051 |
| Underwriters: | Underwritten by certain underwriters at Lloyd's and other insurers |
| Led By: | CFC 1988 |


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# U.S. TERRORISM RISK INSURANCE ACT OF 2002 AS AMENDED NOT PURCHASED CLAUSE

| | |
|---|---|
| ATTACHING TO POLICY NUMBER: | ESO0740775413 |
| THE INSURED: | Ebusiness Strategies LLC |
| WITH EFFECT FROM: | 02 Apr 2026 |

This Clause is issued in accordance with the terms and conditions of the "U.S. Terrorism Risk Insurance Act of 2002" as amended, as summarized in the disclosure notice.

It is hereby noted that **we** have made available coverage for “insured losses” directly resulting from an "act of terrorism" as defined in the "U.S. Terrorism Risk Insurance Act of 2002", as amended (“TRIA”) and **you** have declined or not confirmed to purchase this coverage.

This Insurance therefore affords no coverage for losses directly resulting from any "act of terrorism" as defined in TRIA except to the extent, if any, otherwise provided by this Policy.

All other terms, Conditions and Exclusions of this Insurance including applicable limits and deductibles remain unchanged and apply in full force and effect to the coverage provided by this Insurance.

LMA5390 (Amended)
09 January 2020

SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE POLICY


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# TEXAS SURPLUS LINES CLAUSE

| | |
|---|---|
| ATTACHING TO POLICY NUMBER: | ESO0740775413 |
| THE INSURED: | Ebusiness Strategies LLC |
| WITH EFFECT FROM: | 02 Apr 2026 |

This insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as surplus line coverage under the Texas insurance statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the surplus lines insurer providing this coverage, and the insurer is not a member of the property and casualty insurance guaranty association created under Chapter 462, Insurance Code. Chapter 225, Insurance Code, requires payment of a 4.85 percent tax on gross premium.

SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE POLICY


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# PROFESSIONAL SERVICES EXCLUSION CLAUSE (FOR LANGUAGE)

| | |
|---|---|
| ATTACHING TO POLICY NUMBER: | ESO0740775413 |
| THE INSURED: | Ebusiness Strategies LLC |
| WITH EFFECT FROM: | 02 Apr 2026 |

It is understood and agreed that the following is added to the EXCLUSIONS RELATING TO ALL INSURING CLAUSES:

Professional services

in respect of INSURING CLAUSES 2, 3, 4, 5 and 6, for carrying out, or failing to carry out, professional services for a fee or any act, error or omission relating to a professional service.

SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE POLICY


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# RT SPECIALTY SPECIAL AMENDATORY CLAUSE

| | |
|---|---|
| ATTACHING TO POLICY NUMBER: | ESO0740775413 |
| THE INSURED: | Ebusiness Strategies LLC |
| WITH EFFECT FROM: | 02 Apr 2026 |

It is understood and agreed that the following amendments are made to the Declarations page:

1. The time period shown as the "TIME FRANCHISE" is deleted in its entirety and replaced with the following:
   TIME FRANCHISE: 6 hours

2. The duration and premium stated as the "OPTIONAL EXTENDED REPORTING PERIOD" are deleted in their entirety and replaced with the following:
   12 months for 100% of applicable annualized premium
   24 months for 160% of applicable annualized premium
   36 months for 200% of applicable annualized premium
   48 months for 225% of applicable annualized premium
   60 months for 250% of applicable annualized premium
   72 months for 275% of applicable annualized premium

3. **SECTION G: POST BREACH REMEDIATION COSTS** of **INSURING CLAUSE 3** is deleted in its entirety and replaced with the following:

   **SECTION G: POST BREACH REMEDIATION COSTS**
   Limit of liability: USD75,000 each and every clain

4. **SECTION I: CLAIM PREPARATION COSTS** of **INSURING CLAUSE 6** is deleted in its entirety and replaced with the following:

   **SECTION I: CLAIMS PREPARATION COSTS**:
   Limit of liability: USD50,000 each and every clain

5. **INSURING CLAUSE 11: COURT ATTENDANCE COSTS** is deleted in its entirety and replaced with the following:

   **INSURING CLAUSE 11: COURT ATTENDANCE COSTS**
   Aggregate limit of liability: USD1,000,000 in the aggregate, sub-limited to USD3,000 per day

6. The following **SECTION** is added to **INSURING CLAUSE 2**:

   **SECTION: CORRECTIVE ACTION PLAN COSTS**
   Aggregate limit of liability: USD50,000 in the aggregate, including costs and expenses

7. The following **SECTIONS** are added to **INSURING CLAUSE 6**:

   **SECTION: NON-TECH DEPENDENT BUSINESS INTERRUPTION**


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| | | |
|---|---|---|
| Limit of liability: | USD1,000,000 | each and every claim |

SECTION: CONTINGENT PROPERTY DAMAGE

| | | |
|---|---|---|
| Limit of liability: | USD250,000 | each and every claim |

It is further understood and agreed that the following amendments are made to this Policy:

1. **INSURING CLAUSE 1** (**SECTION D** only) is deleted in its entirety and replaced with the following:

   SECTION D: INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT

   **We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of the provision of **your technology services** for any:

   a. infringement of any **intellectual property rights**;

   b. act of passing-off, piracy or plagiarism or any misappropriation of content, concepts, format rights or ideas or breach of a contractual warranty relating to **intellectual property rights**;

   c. breach of any **intellectual property rights** license acquired by **you**;

   d. failure to attribute authorship or provide credit;

   e. misappropriation of a trade secret;

   f. invasion, infringement or interference with rights of privacy or publicity, including false light, public disclosure of private facts, intrusion, breach of confidence and commercial appropriation of name or likeness;

   g. improper deep linking or framing;

   h. breach of agreement, breach of confidentiality or promissory estoppel, in connection with the failure to maintain the confidentiality of a source or materials furnished by a source or the failure to portray a source or a subject in a certain light; or

   i. defamation, including but not limited to libel, slander, trade libel, product disparagement, injurious falsehood, emotional distress or outrage based on harm to the character or reputation of any person or entity.

   **We** will also pay costs and expenses on **your** behalf.

2. **INSURING CLAUSE 2** (**SECTION E** only) is deleted in its entirety and replaced with the following:

   SECTION E: PCI FINES, PENALTIES AND ASSESSMENTS


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**We** agree to pay on **your** behalf any fines, penalties and card brand assessments including fraud recoveries, operational reimbursements, non-cooperation costs, card reissuance costs and case management fees, which **you** become legally obliged to pay to **your** acquiring bank or payment processor as a direct result of a payment card breach first discovered by **you** during the **period of the policy**.

**We** will also pay costs and expenses on **your** behalf.

3. INSURING CLAUSE 3 (SECTION D only) is deleted in its entirety and replaced with the following:

   SECTION D: CRISIS MANAGEMENT COSTS

   **We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** or **system failure** first discovered by **you** during the **period of the policy** to:

   a. engage with a crisis communications consultant to obtain specific advice in direct relation to the **cyber event** or **system failure**;

   b. coordinate media relations in response to the **cyber event** or **system failure**;

   c. receive training for relevant spokespeople with respect to media communications in direct relation to the **cyber event** or **system failure**; and

   d. formulate a crisis communications plan in order to reduce damage to **your** brand and reputation as a direct result of the **cyber event** or **system failure**.

4. INSURING CLAUSE 3 (SECTION E only) is deleted in its entirety and replaced with the following:

   SECTION E: PRIVACY BREACH MANAGEMENT COSTS

   **We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered during the **period of the policy** to:

   a. print and post appropriate notices for any individual affected by the actual or suspected **cyber event** or to send e-mail notices or issue substitute notices, including any privacy breach notification that **you** are not legally obliged to make;

   b. provide credit monitoring services, identity monitoring services, identity restoration services or identity theft insurance to affected individuals;

   c. set up a call center to manage inbound and outbound calls in direct relation to the **cyber event**;


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d. provide translation services to manage communications with affected or potentially affected individuals;

e. issue appropriate notices, via a method determined by us, to any individuals other than those stated in a. above that are requested by **you** and agreed to by **us** (**our** agreement will not be unreasonably withheld); and

f. freeze the credit of any affected individual and subsequently remove that credit freeze.

5. The first paragraph of **INSURING CLAUSE 5: CYBER EXTORTION** is deleted in its entirety and replaced with the following:

   **We** agree to pay on behalf of the **company** any ransom (including ransoms paid in fiat currency, cryptocurrency or in the form of tangible property) in response to an extortion demand made against **you** and first discovered by **you** during the **period of the policy** as a direct result of any actual or threat of:

6. The final line of **INSURING CLAUSE 6** (**SECTION A** only) is deleted in its entirety and replaced with the following:

   reasonably and necessarily incurred as a direct result of any loss or damage to the data application components of **your computer systems**, where the loss or damage is first discovered by **you** during the **period of the policy**.

7. **INSURING CLAUSE 6** (**SECTION I** only) is deleted in its entirety and replaced with the following:

   SECTION I: CLAIM PREPARATION COSTS

   **We** agree to pay on **your** behalf any reasonable sums necessarily incurred to determine the amount of **your income loss** sustained following an interruption to **your** business activities covered under **INSURING CLAUSE 6**. **We** will only pay these costs where they are incurred with an expert appointed by the **claims manager** that is agreed between **you** and **us**.

8. The following is added to **INSURING CLAUSE 2** (**SECTION D** only):

   The insurability of the fines and penalties will be determined in accordance with the most favorable State law.

9. The following **SECTIONS** are added to **INSURING CLAUSE 2**:

   SECTION: CORRECTIVE ACTION PLAN COSTS

   **We** agree to pay on **your** behalf any sums necessarily incurred with the **claims manager** in order to meet any of the following requirements specified within a corrective action plan agreed by **you** with the OCR as a direct result of a **cyber event** first discovered by **you** during the **period of the policy**:

   a. the development of a Health Insurance Portability


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and Accountability Act (HIPAA) of 1996 compliant information security document set;

b. complete a HIPAA compliance audit;

c. the costs associated with completing an information security risk assessment; and

d. the costs associated with the implementation of a security awareness training program.

10. The following **SECTIONS** are added to **INSURING CLAUSE 6**:

SECTION: NON-TECH DEPENDENT BUSINESS INTERRUPTION

**We** agree to reimburse **you** for **your income loss** and **extra expense** sustained during the **indemnity period** as a direct result of an interruption to **your** business activities arising directly out of any sudden, unexpected and continuous outage of computer systems used directly by a **non-tech supply chain partner** first discovered by **you** during the **period of the policy**, provided that the computer systems downtime lasts longer than the **time franchise** and arises directly out of any **cyber event**, **system failure** or **operator error**.

SECTION: CONTINGENT PROPERTY DAMAGE

**We** agree to reimburse **you** for any reasonable sums necessarily incurred:

a. to repair or rebuild **your premises**;

b. to repair or replace **your contents** and **stock**;

c. for electronic data restoration;

d. to make temporary repairs to, expedite permanent repairs for, or expedite permanent replacement of, your premises or contents and stock;

e. to remove any debris; and

f. for professional services including architects, surveyors and engineers

as a direct result of physical damage to **your premises** or **contents** and **stock** first occurring during the **period of the policy** and caused by a **cyber event**.

However, **we** will not make any payment under this Section for which **you** are entitled to indemnity under any other insurance, except for any additional sum which is payable over and above the other insurance.

11. The **"YOUR TIME FRANCHISE"** part of **YOUR DEDUCTIBLE** is deleted in its entirety and replaced with the following:

In respect of **INSURING CLAUSE 6** (**SECTIONS C**, **D**, **E**, **F** and the **NON-TECH DEPENDENT BUSINESS INTERRUPTION SECTION** only), a


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single **time franchise** and **indemnity period** will apply to each **claim**. Where the same original cause or single source or event causes more than one period of c**omputer systems** downtime these will be considered one period of **computer systems** downtime whose total duration is equal to the cumulative duration of each individual period of **computer systems** downtime.

12. The **DEFINITION** of **"Computer systems"** is deleted in its entirety and replaced with the following:

    **"Computer systems"** means

    all electronic computers used directly by **you**, including operating systems, software, hardware and all communication and open system networks and any data or websites wheresoever hosted, off-line media libraries and data back-ups, personal devices of **employees** and **senior executive officers** where used directly for **business operations**, and mobile devices including but not limited to smartphones, iPhones, tablets or personal digital assistants.

    "**Computer systems**" also means supervisory control and data acquisition (SCADA) systems, industrial control systems and other similar operational technology.

13. The following are added to the **DEFINITION** of **"claim"**:

    f. a request for arbitration or mediation; or

    g. a request to toll or waive statute of limitations

14. Part b. of the **DEFINITION** of **"Costs and expenses"** is deleted in its entirety and replaced with the following:

    b. any pre or post judgement interest; and

15. The **DEFINITION** of **"Cyber event"** is deleted in its entirety and replaced with the following:

    **"Cyber event"** means

    any actual or suspected unauthorized system access, electronic attack or **privacy breach**, including but not limited to an attack that utilizes artificial intelligence (AI), denial of service attack, cyber terrorism, hacking attack, Trojan horse, phishing attack, man-in-the-middle attack, application-layer attack, compromised key attack, malware infection (including spyware or ransomware), computer virus or actions of a rogue **employee**.

16. Part b. of the **DEFINITION** of **"Indemnity period"** is deleted in its entirety and replaced with the following:

    b. the downtime of computer systems used directly by a **supply chain partner** or **non-tech supply chain partner**;

17. The **DEFINITION** of **"Employee"** is deleted in its entirety and replaced with the following:


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**"Employee"** means

any employee of the **company**, any intern working for the **company**, any volunteer working for the **company** and any individual working for the **company** as an independent contractor.

18. The **DEFINITION of "Intellectual property rights"** is deleted in its entirety and replaced with the following:

    **"Intellectual property rights"** means

    any intellectual property right, including, but not limited to, copyright, trademark, trade dilution, trade dress, commercial rights, design rights, domain name rights, image rights, moral rights, service mark or service name.

    **Intellectual property rights** do not include any patent.

19. The **DEFINITION** of **"Privacy breach"** is deleted in its entirety and replaced with the following:

    **"Privacy breach"** means

    an actual or suspected unauthorized disclosure of information (including information in electronic, paper or audio format and biometric information) arising out of an electronic attack, accidental disclosure, theft or the deliberate actions of a rogue **employee** or **third party**.

    "**Privacy breach**" does not mean a situation where information is deliberately shared with or sold to a **third party** with the knowledge and consent of a **senior executive officer**.

20. The **DEFINITION** of **"Senior executive officer"** is deleted in its entirety and replaced with the following:

    **"Senior executive officer"** means

    board members, the chief executive officer, chief finance officer, chief information officer, chief information security officer, general counsel, chief privacy officer and chief risk manager of the **company**, including any individual performing the functional equivalents of these positions in the **company**.

21. The **DEFINITION** of **"Subsidiary"** is deleted in its entirety and replaced with the following:

    **"Subsidiary"** means

    any entity which the **company** has majority ownership of, meaning more than 50% ownership, or managing control of on or before the **inception date**.

22. The following paragraph is added to the **DEFINITION** of **"Supply chain partner"**:

    "**Supply chain partner**" does not mean **non-tech supply chain**


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**partner**.

23. The second paragraph of the **"System failure" DEFINITION** is deleted in its entirety and replaced with the following:

    However, in respect of **INSURING CLAUSE 4** (**SECTION F** and the **NON-TECH DEPENDENT BUSINESS INTERRUPTION SECTION** only), "**system failure**" also means any sudden, unexpected and continuous downtime of computer systems used directly by a **supply chain partner** or **non-tech supply chain partner** which renders them incapable of supporting their normal business function and is caused by an application bug, an internal network failure or hardware failure.

24. The **DEFINITION** of **"you/your"** is deleted in its entirety and replaced with the following:

    **"You/your"** means:

    a. the **company**, **employees** and **senior executive officers** solely acting in the normal course of **your business operations**;

    b. the estates, heirs, legal representatives or assigns of any **employee** or **senior executive officer** in the event of their death, incapacity, insolvency or bankruptcy but only with respect to any act, error or omission committed or alleged to have been committed by the **employee** or **senior executive officer** while acting in their capacity as **employee** or **senior executive officer**; and

    c. the parent, spouse, domestic partner, civil partner or child of any **employee** or **senior executive officer** but only in respect of any claim made against them by reason of:

        i. their status as parent, spouse, domestic partner, civil partner or child of the **employee** or **senior executive officer**; or

        ii. their ownership or interest in property which the claimant seeks as recovery for an alleged act, error or omission committed by the **employee** or **senior executive officer** while acting in their capacity as **employee** or **senior executive officer**.

25. The following **DEFINITIONS** are added:

    **"Contents"** means

    items at **your premises** that the **company** owns or is legally responsible for, other than stock, are used primarily in connection with **your business operations** and are not permanently attached to a building, including:

    a. improvements made to the **premises** by **you** as a tenant or by a previous tenant who previously occupied the **premises**, including decorating, flooring, internal fixtures and fittings,


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aerials and satellite dishes;

b. desktop computer hardware and ancillary equipment (including monitors, keyboards and printers);

c. television, photocopying and telecommunications equipment;

d. valuable documents including plans and designs in paper format;

e. heating oil contained in fixed tanks in the open at your premises;

f. refrigeration, ventilation, cooking, dishwashing and laundry appliances;

g. locks and keys, provided this is necessary to maintain the security of your premises or safes;

h. any trailer, provided that it was unattached from, being attached to, or being detached from, a motor vehicle when the damage occurred;

i. outdoor signs located on the premises; and

j. the personal belongings of any employee or visitor whilst at your premises, provided they are not covered under any other insurance.

**"Premises"** means

any building owned or leased by the company solely for the purpose of conducting **your** business activities and including:

a. any completed extension to the building;

b. any permanently installed machinery and equipment;

c. any permanently attached fixtures and fittings;

d. landlord's fixtures and fittings;

e. retaining walls, outdoor walls, gates, fences, yards, car parks, roadways and pavements;

f. trees, shrubs, plants and lawns;

g. piping, ducting, cables, wires and accessories extending to the public mains that **you** are responsible for; and

h. fixed glass in windows, doors, skylights, mirrors fixed to the building, glass showcases and shelves fixed to the building, sanitary fixtures and fittings and other fixed glass.

**"Stock"** means

a. stock;

b. samples;


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c. merchandise goods; and

d. goods held in trust;

whilst at **your premises**.

**"Non-tech supply chain partner"** means

any **third party** that provides **you** with goods or services under a written contract.

"**Non-tech supply chain partner**" does not mean a **supply chain partner**.

26. The "Associated Companies" **EXCLUSION** is deleted in its entirety and replaced with the following:

    **Associated companies**

    a. in respect of any **claim** made by any company, firm or partnership in which the **company** has greater than a 25% executive or financial interest, unless the **claim** emanates from an independent **third party**;

    b. in respect of any **claim** made by any company, firm, partnership or individual which has greater than a 25% executive or financial interest in the **company**, unless the **claim** emanates from an independent **third party**; or

    c. in respect of any **claim** made by or on behalf of the **company** against a **third party**.

    However, this Exclusion will not apply to any cover afforded under the **ADDITIONAL INSUREDS CONDITION**.

27. The final paragraph of the "Bodily injury and property damage" **EXCLUSION** is deleted in its entirety and replaced with the following:

    However, this Exclusion will not apply to:

    a. **INSURING CLAUSES 1** (**SECTION A** only) and **2** (**SECTION F** only);

    b. **INSURING CLAUSES 1** (**SECTION D** only) and **2** (**SECTIONS A**, **B** and **C** only) for any **claim** as a direct result of mental injury or emotional distress; and

    c. **INSURING CLAUSE 6** (**CONTINGENT PROPERTY DAMAGE SECTION** only).

28. The following is added to the "Patent infringement" **EXCLUSION**:

    However this Exclusion will not apply to **INSURING CLAUSE 2** (**SECTION A** only) for any infringement of a patent by a **third party** as a direct result of any **cyber event**.

29. The final paragraph of the "Terrorism" **EXCLUSION** is deleted in its entirety and replaced with the following:


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However, this Exclusion does not apply to a **cyber event** affecting **your computer systems**, a **supply chain partner's** or a **non-tech supply chain partner's** computer systems.

30. The following is added to the "Uninsurable fines" **EXCLUSION**:

    However, **we** will apply the most favorable State law to **you** in determining whether the fines, penalties, civil or criminal sanctions or multiple, punitive or exemplary damages are insurable.

31. The "Willful or dishonest acts of senior executive officers" **EXCLUSION** is deleted in its entirety and replaced with the following:

    **Willful or dishonest acts of senior executive officers**

    arising out of any willful, malicious, reckless or dishonest act or omission by a **senior executive officer** as determined by final and non-appealable adjudication, arbitral tribunal or written admission.

    However, no willful, criminal, malicious or dishonest act, error or omission committed by a **senior executive officer** will be imputed to any other **senior executive officer** for the purpose of determining the applicability of this Exclusion.

32. The first part b. of the "What you must do in the event of a claim or cyber incident" **CONDITION** is deleted in its entirety and replaced with the following:

    b. in respect of **INSURING CLAUSES 4** and **5**, report the theft or incident as soon as is reasonably practicable to the appropriate law enforcement authorities if necessary;

33. The last paragraph of the "Agreement to pay claims (duty to defend)" **CONDITION** is deleted in its entirety and replaced with the following:

    **We** will not settle any **claim** without **your** consent. If **you** refuse to provide **your** consent to a settlement recommended by **us** and elect to continue legal proceedings in connection with the **claim**, our liability for the **claim** will not exceed the amount for which the **claim** could have been settled, plus:

    a. 90% of any costs and expenses incurred after the date the settlement was recommended by **us**; and

    b. 90% of that part of any sum **you** become legally obliged to pay in excess of the settlement amount recommended by **us**.

    **We** will have no responsibility to pay the remaining 10% of the costs and expenses and that part of any sum **you** become legally obliged to pay as stated in a. and b. above.

34. The following is added to the "Additional insureds" **CONDITION**:

    Where **we** indemnify a **third party** as an additional insured under


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this Policy, this Policy will be primary and non-contributory to the **third party's** own insurance, but only if **you** and the **third party** have entered into a contract that contains a provision requiring this.

35. The first paragraph of the “Cancellation” **CONDITION** is deleted in its entirety and replaced with the following:

    This Policy may be canceled:

    a. at any time upon prior written request by **you**; or

    b. with 60 days written notice by **us** in the event that any amount due to **us** by **you** remains unpaid more than 60 days beyond the **inception date**.

36. Where "14 days" is stated in the "Cancellation" **CONDITION**, it is deleted in its entirety and replaced with "30 days".

37. Where "60 days" is stated in the "Extended reporting period" **CONDITION**, it is deleted in its entirety and replaced with "90 days".

38. Where "30 days" is stated in the "Optional extended reporting period" **CONDITION**, it is deleted in its entirety and replaced with "90 days".

39. The "Mergers and acquisitions" **CONDITION** is deleted in its entirety and replaced with the following:

    Mergers and acquisitions

    If **you** acquire or create an entity during the **period of the policy**, including an entity merging into or consolidating with **you** and the **company** is the surviving entity, cover is automatically extended under this Policy to include the acquired or created entity as a **subsidiary**. Cover for any acquired or created entity is only provided under this Policy for any act, error or omission committed, or **cyber event** first discovered, on or after the date of its acquisition or creation.

    If during the **period of the policy** you are acquired by another entity, or you merge or consolidate with another entity and the **company** is not the surviving entity, then cover under this Policy will continue until the **expiry date** but only in respect of any act, error or omission committed, or **cyber event** first discovered, prior to the date of the acquisition, merger or consolidation.

40. The "Run-off cover" **CONDITION** is deleted in its entirety.

41. The first paragraph of the “Our Rights of recovery” **CONDITION** is deleted in its entirety and replaced with the following:

    If **we** make any payment under this Policy and **you** have any right of recovery against a **third party** in respect of this payment, then **we** will maintain this right of recovery. **You** will do whatever is reasonably necessary to secure this right and will not do anything after the event which gave rise to the claim to prejudice this right. However, **we** will not seek any right of recovery where **you** have


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explicitly waived **your** right of recovery prior to the incident which gave rise to a claim under this Policy.

SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE POLICY


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# Technology

Policy document

United States

# Proactive services

**As an added benefit to this policy proactive cyber attack prevention services are provided to you, working to identify vulnerabilities and risks targeting insureds and try to prevent them from turning into cyber incidents. For more information on how these services work, contact us or read this article.**

CFC (the Coverholder identified on your Policy Certificate) strives to provide proactive support and advice on cyber risks and vulnerabilities that you may be exposed to throughout the duration of the policy. In certain circumstances such support may be provided by CFC Response.

## Accessing proactive services

It is recommended that you download and activate the CFC Response app, including enabling notifications, in order to ensure full access to, and benefit from, CFC's Proactive services. While CFC will endeavour to provide these proactive services to you without the app, downloading the app will allow CFC to provide a deeper level of threat analysis. Your policy number provides you with free access to the app.

## No impact on policy limits

Being alerted of a risk or vulnerability by CFC will not constitute a claim under your policy. CFC interactions with you to provide support and advice regarding cyber risks and vulnerabilities they have identified will not impact any coverage that you may be entitled to.

## Proactive services tailored for you

CFC supports you by trying to identify risks and vulnerabilities that may lead to cyber incidents throughout the duration of the policy. If CFC becomes aware of a cyber risk or vulnerability to which you may be exposed, CFC will strive to provide proactive risk management services to you. These services can include:

A. sending threat alerts through the Response mobile application (or via another means of communication if you have not downloaded the Response mobile application);

B. providing initial advice to you about the risk or vulnerability, including threat intelligence; and

C. providing initial remote support and assistance to you to remedy the risk or vulnerability.

The Services at b. and c. above will be provided to you by CFC Response.

## If a cyber event occurs

In the event that the risk or vulnerability CFC alerts you about results in a notifiable incident under the Policy, you should refer to the Policy Conditions or speak with your broker for information about notification requirements to CFC.

## About CFC Response

CFC Response is a trading name of the below listed entities, all of which are affiliates of CFC:

1. CFC Security Inc, DE file number 7451204, principal place of business at 300 E. Highland Mall Blvd, Suite 300, Austin, Texas 78752 United States;
2. CFC Security Limited, registered company number 13497455 with registered address at 85 Gracechurch Street, London, EC3V 0AA; and
3. CFC Security Pty Ltd, principal place of business at 130 Bundall Road, Unit 22, Queensland, 4217, Australia, ACN: 096 518 820.

You may receive services from one or more of the above companies depending upon your geographical location.

By using CFC Response services, you agree to the relevant entity's terms and conditions, which can be found here. These terms outline the scope of services provided and any applicable limitations on liability. CFC is not responsible for services provided by CFC Response. Liability for these services is governed by the terms and conditions of the relevant CFC Response entity. If you have any questions about these terms, please contact CFC Response for clarification at enquiries@cfcresponse.com.

## Our liability for proactive support services

CFC's Proactive services are designed to support cyber risk visibility and deliver timely alerts. These services do not replace the need for a comprehensive cybersecurity programme. Whilst CFC will endeavour to identify risks and vulnerabilities that may lead to cyber incidents throughout the duration of the policy to you, neither CFC nor CFC Response offers any guarantee that all such risks and vulnerabilities will be prevented, identified or resolved by CFC or CFC Response. You remain solely responsible for securing your systems and data.

## PREAMBLE

As an added benefit to this Policy, proactive cyber attack prevention services are provided to **you**. These services are designed to help identify potential vulnerabilities and threats targeting **you** and aim to assist in reducing the likelihood of cyber incidents.

IMPORTANT: COVERAGE TRIGGERS. It is important for **you** to review this Policy in its entirety carefully, including **CONDITION 1**, as the trigger for coverage, including when **you** must notify **us** of a claim, under each Section and Insuring Clause may differ.

Where **cyber events**, **system failures** or **operator errors** are not specifically excluded from a Section or Insuring Clause of this Policy, then a claim arising out of a **cyber event**, **system failure** or **operator error** which is otherwise covered under that Section or Insuring Clause will be payable, subject to all other terms, conditions and exclusions of this Policy.

This Policy is a contract of insurance between **you** and **us**. **Your** Policy contains all the details of the cover that **we** provide. This Policy consists of and must be read together with the Declarations page and any Endorsements. This Policy is not complete unless it is signed and a Declarations page is attached.

The sections of this Policy are identified by the blue lines across the page with white upper case print, these are for information purposes only and do not form part of the cover given by this Policy. Terms in bold upper case print are references to specific Insuring Clauses, Sections or Conditions. Other terms in bold lower case print are defined terms and have a special meaning as set forth in the Definitions section and elsewhere. Words stated in the singular will include the plural and vice versa.

In consideration of the **premium** and in reliance upon the information that **you** have provided to **us** prior to the commencement of this insurance, **we** agree to provide the cover as set out below:

## INSURING CLAUSES

### INSURING CLAUSE 1: PROFESSIONAL LIABILITY

#### SECTION A: PRODUCTS AND SERVICES LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of **your technology services** for any:

a. negligent act, error, omission, misstatement or misrepresentation;

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b. breach of any contractual term implied by law concerning necessary quality, safety or fitness, or **your** duty to use reasonable care and skill;
c. failure of a product to perform or function as intended;
d. **bodily injury** or **property damage** and any consequential financial loss related to the **bodily injury** or **property damage**; or
e. other act, error or omission giving rise to civil liability but not any breach of contract other than as specified above.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION B: BREACH OF CONTRACT

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period as a direct result of any unintentional breach of a contract with a **client** for the provision of **your technology services**.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION C: SUB-CONTRACTOR VICARIOUS LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period as a direct result of any act, error or omission committed by any sub-contractor engaged by **you** for the provision of **your technology services**.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION D: INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT AND MEDIA LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of the provision of **your technology services** for any:

a. infringement of any **intellectual property rights**, breach of any **intellectual property rights** license acquired by **you** where **you** acted in good faith and did not knowingly intend to breach those rights or failure to attribute authorship or provide credit;
b. act of passing-off, piracy or plagiarism or any misappropriation of content, concepts, format rights or ideas or breach of a contractual warranty relating to **intellectual property rights**;
c. misappropriation of a trade secret;
d. invasion, infringement or interference with rights of privacy or publicity, including false light, public disclosure of private facts, intrusion, breach of confidence and commercial appropriation of name or likeness;

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e. breach of agreement, breach of confidentiality or promissory estoppel, in connection with the failure to maintain the confidentiality of a source or materials furnished by a source or the failure to portray a source or a subject in a certain light; or
f. defamation, including but not limited to libel, slander, trade libel, product disparagement, injurious falsehood, emotional distress or outrage based on harm to the character or reputation of any person or entity.

**We** will also pay **costs and expenses** on **your** behalf.

### SECTION E: REGULATORY COSTS AND FINES

**We** agree to pay on **your** behalf **costs and expenses** and any fines or penalties as a result of any **regulatory investigation** first initiated against **you** during the **period of the policy** or any applicable optional extended reporting period arising directly out of the provision of **your technology services**.

However, **we** will not pay **costs and expenses**, fines or penalties in respect of any **regulatory investigation** affecting the wider environment in which **you** conduct **your technology services**, as opposed to any **regulatory investigation** solely affecting **you**.

### SECTION F: DISHONESTY OF EMPLOYEES

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of any dishonesty by any **employee** in the provision of **your technology services**.

**We** will also pay **costs and expenses** on **your** behalf.

### SECTION G: PAYMENT OF WITHHELD FEES

**We** agree to pay **your withheld fees** in the event that a **client** of **yours** brings or threatens to bring a **claim** against **you** that would be covered under **INSURING CLAUSE 1** (**SECTIONS A**, **B**, **C** and **F** only) for an amount greater than **your withheld fees** if **you** attempt to recover the **withheld fees** from them. Prior to payment of **your withheld fees you** must obtain written confirmation from the **client** that they will not bring a **claim** against **you** if **you** agree not to pursue them for **your withheld fees** and provide it to **us**.

## INSURING CLAUSE 2: NETWORK SECURITY & PRIVACY LIABILITY

### SECTION A: NETWORK SECURITY LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including the establishment of any consumer redress fund and associated expenses) as a result of any **claim** arising out of a **cyber event** first discovered by **you** during the **period of the policy** that results in:

a. the transmission of malware to a **third party's computer system**;
b. **your computer systems** being used to carry out a denial of service attack;

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c. **your** failure to prevent unauthorized access to information stored or applications hosted on **your computer systems** or a **third party's computer systems**; or
d. identity theft, experienced by **your employees**, **senior executive officers** or any **third party**.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION B: PRIVACY LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including the establishment of any consumer redress fund and associated expenses) as a result of any **claim** arising out of a **cyber event** first discovered by **you** during the **period of the policy** that results in:

a. an actual or suspected disclosure of or unauthorized access to any Personally Identifiable Information (PII), including payment card information or Protected Health Information (PHI);
b. **your** failure to adequately warn affected individuals of a **privacy breach**, including the failure to provide a data breach notification in a timely manner;
c. a breach of any rights of confidentiality as a direct result of **your** failure to maintain the confidentiality of any data pertaining to an **employee** or **senior executive officer**;
d. a breach of any rights of confidentiality, including a breach of any provisions of a non-disclosure agreement or breach of a contractual warranty relating to the confidentiality of commercial information, PII, or PHI;
e. a breach of any part of **your** privacy policy; or
f. actual or suspected disclosure of or unauthorized access to **your** data or data for which **you** are responsible.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION C: MANAGEMENT LIABILITY

**We** agree to pay on behalf of any board member, C-level executive, in-house lawyer and risk manager of the **company** (including **your** Chief Information Security Officer, Chief Information Officer, Chief Technology Officer or their functional equivalents), all sums they become legally obliged to pay as a result of any **claim** made against them arising directly out of a **cyber event** first discovered by **you** during the **period of the policy**.

**We** will also pay **costs and expenses** on their behalf.

However, **we** will not make any payment under this Section for which the board member, C-level executive, in-house lawyer or risk manager is entitled to indemnity under any other insurance, except for any additional sum which is payable over and above the other insurance.

## SECTION D: REGULATORY FINES, PENALTIES AND INVESTIGATION COSTS

**We** agree to pay on **your** behalf any fines and penalties resulting from a **regulatory investigation** arising as a direct result of a **cyber event** first discovered by **you** during the **period of the policy**.

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**We** will also pay **costs and expenses** on **your** behalf.

### SECTION E: PCI FINES, PENALTIES AND ASSESSMENTS

**We** agree to pay on **your** behalf any fines, penalties and card brand assessments including fraud recoveries, operational reimbursements, non-cooperation costs and case management fees, which **you** become legally obliged to pay to **your** acquiring bank or payment processor as a direct result of a **payment card breach** first discovered by **you** during the **period of the policy**.

**We** will also pay **costs and expenses** on **your** behalf.

### SECTION F: CONTINGENT BODILY INJURY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimant's costs and expenses) as a result of any **claim** arising out of **bodily injury** caused as a direct result of a **cyber event** affecting **your computer systems** first discovered by **you** during the **period of the policy**.

**We** will also pay **costs and expenses** on **your** behalf.

However, **we** will not make any payment under this Section for which **you** are entitled to indemnity under any other insurance, except for any additional sum which is payable over and above the other insurance.

## INSURING CLAUSE 3: CYBER INCIDENT RESPONSE

### SECTION A: INCIDENT RESPONSE COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered by **you** during the **period of the policy** to:

a. gain access to **our** 24/7 **cyber incident response line**;
b. engage with **our claims manager** who will coordinate the initial response;
c. obtain initial advice and consultancy from **our claims manager**, including threat intelligence in relation to the **cyber event**; and
d. obtain initial remote support and assistance from **our claims manager** to respond to the **cyber event**.

### SECTION B: LEGAL AND REGULATORY COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered by **you** during the **period of the policy** to:

a. obtain legal advice to determine the correct course of action;
b. draft **privacy breach** notification letters, substitute notices, website notices or e-mail notification templates;
c. notify any appropriate governmental, regulatory, law enforcement, professional or statutory body;
d. respond to any **regulatory investigation**; and

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e. defend any regulatory action.

## SECTION C: IT SECURITY AND FORENSIC COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered by **you** during the **period of the policy** to:

a. engage with an external IT security consultant to identify the source and scope of the **cyber event**;
b. obtain initial advice to remediate the impact of the **cyber event**;
c. conduct a forensic investigation of **your computer systems** where reasonable and necessary or as required by law or a regulatory body (including a requirement for a PCI Forensic Investigator);
d. contain and remove any malware discovered on **your computer systems**; and
e. engage with an IT security consultant to provide expert witness testimony at any trial or hearing arising from the **cyber event**.

## SECTION D: CRISIS COMMUNICATION COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered by **you** during the **period of the policy** to:

a. engage with a crisis communications consultant to obtain specific advice in direct relation to the **cyber event**;
b. coordinate media relations in response to the **cyber event**;
c. receive training for relevant spokespeople with respect to media communications in direct relation to the **cyber event**; and
d. formulate a crisis communications plan in order to reduce damage to **your** brand and reputation as a direct result of the **cyber event**.

## SECTION E: PRIVACY BREACH MANAGEMENT COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered during the **period of the policy** to:

a. print and post appropriate notices for any individual affected by the actual or suspected **cyber event** or to send e-mail notices or issue substitute notices, including any **privacy breach** notification that **you** are not legally obliged to make;
b. provide credit monitoring services, identity monitoring services, identity restoration services or identity theft insurance to affected individuals;
c. set up a call center to manage inbound and outbound calls in direct relation to the **cyber event**; and
d. provide translation services to manage communications with affected individuals.

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### SECTION F: THIRD PARTY PRIVACY BREACH MANAGEMENT COSTS

**We** agree to pay on behalf of any **third party** any reasonable sums necessarily incurred as a direct result of a **cyber event** first discovered by **you** during the **period of the policy** to:

a. print and post appropriate notices for any individual affected by the actual or suspected **cyber event** or to send e-mail notices or issue substitute notices;
b. provide credit monitoring services, identity monitoring services, identity restoration services or identity theft insurance to affected individuals;
c. set up a call center to manage inbound and outbound calls in direct relation to the **cyber event**; and
d. provide translation services to manage communications with affected individuals;

provided that **you** are contractually required to indemnify the **third party** against this **cyber event** and they have a legal obligation to notify affected individuals.

### SECTION G: POST BREACH REMEDIATION COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, with **our claims manager** following a **cyber event** covered under **INSURING CLAUSE 3** for the following services in order to mitigate the potential of a future **cyber event**:

a. complete an information security risk assessment;
b. conduct an information security gap analysis;
c. develop an information security document set; and
d. deliver an information security awareness training session.

## INSURING CLAUSE 4: CYBER CRIME

### SECTION A: FUNDS TRANSFER FRAUD

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of any **third party** committing:

a. any unauthorized electronic transfer of **company** funds from a bank or other financial institution, including an asset management firm, pension or investment fund;
b. theft of the **company's** money or other financial assets from a bank by electronic means;
c. theft of money or other financial assets from **your** corporate credit cards by electronic means; or
d. any phishing, vishing or other social engineering attack against any **employee** or **senior executive officer** that results in the transfer of **company** funds to an unintended **third party**.

### SECTION B: INVOICE MANIPULATION

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy**, as a direct result of theft committed by a **third party** of a **client's** money or other financial assets, that the **client** intended to send to **you** for the provision of goods and services, but which **you** did not

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receive as a result of fraudulent electronic communications designed to impersonate a **senior executive officer** or **employee**, including the creation of fraudulent invoices or change of banking details.

## SECTION C: NEW VENDOR FRAUD

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of a fraudulent **third party** posing as a legitimate vendor of goods or services with whom **you** are transacting for the first time, resulting in **you** paying for goods or services that **you** did not receive.

## SECTION D: PHYSICAL GOODS FRAUD

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of a **third party** committing any phishing, vishing or other social engineering attack against an **employee** or **senior executive officer** that results in **you** sending the **company's** tangible property or goods to an unintended **third party**.

However, **we** will not make any payment under this Section for **loss** as a result of a legitimate customer not paying or refusing to pay for tangible property or goods that **you** have sent to them.

## SECTION E: THEFT OF PERSONAL FUNDS

**We** agree to reimburse any **senior executive officer** for personal financial loss first discovered by them during the **period of the policy** as a direct result of any **third party** compromising the **company's** network security, which results in:

a. theft of money or other financial assets from a personal bank account of the **senior executive officer**; or
b. identity theft of the **senior executive officer** as a result of a **privacy breach** suffered by **you**.

## SECTION F: CORPORATE IDENTITY THEFT

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of the fraudulent use or misuse of **your** electronic identity, including the:

a. establishment of credit or loans in **your** name;
b. unauthorized electronic signing of any contract or agreement in **your** name;
c. costs associated with the removal of websites designed to impersonate **you**; or
d. the reliance by a **third party** on a fraudulent version of **your** digital identity to execute transactions of **your** funds or other financial assets.

## SECTION G: THEFT OF FUNDS HELD IN ESCROW

**We** agree to reimburse **you** for **loss** (including compensation that the **company** is legally obliged to pay) first discovered by **you** during the **period of the policy** as a direct result of **you** having to reimburse a **client** for theft of the **client's** money or other financial assets from a bank account

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held in **your** name, provided that the theft was committed by a **third party** by electronic means, including any phishing, vishing or other social engineering attack against **you**.

### SECTION H: THEFT OF CLIENT FUNDS

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of **you** having to reimburse a **client** for theft of the **client's** money or other financial assets from a **client's** bank account that **you** had access to, provided that the theft was as a result of a social engineering attack committed against **you** by a **third party**.

### SECTION I: CUSTOMER PAYMENT FRAUD

**We** agree to reimburse **you** in the event of fraudulent electronic communications or websites designed to impersonate **you** or any of **your** products, first discovered by **you** during the **period of the policy**, for **loss** directly attributable to:

a. reimbursing **your** customers for their financial loss arising directly from the fraudulent communications, including fraudulent invoices manipulated to impersonate **you**, where goods or services have not been provided to the customers by **you** or on **your** behalf; and
b. the cost of creating and issuing a specific press release or establishing a specific website to advise **your** customers and prospective customers of the fraudulent communications.

### SECTION J: TELEPHONE HACKING

**We** agree to reimburse **you** for **loss** associated with the cost of unauthorized calls or unauthorized use of **your** bandwidth first discovered by **you** during the **period of the policy** as a direct result of **your** telephone system being hacked by a **third party**.

### SECTION K: UNAUTHORIZED USE OF COMPUTER RESOURCES

**We** agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of **cryptojacking** or **botnetting**.

## INSURING CLAUSE 5: CYBER EXTORTION

**We** agree to pay on behalf of the **company** any ransom in response to an extortion demand made against **you** and first discovered by **you** during the **period of the policy** as a direct result of any actual or threat of:

a. introduction of malware, including ransomware, into **your computer systems**;
b. prevention of access to **your computer systems** or any **third party** systems hosting **your** applications or data;
c. disclosure of **your** confidential information or confidential information entrusted to **you**; or
d. damage to **your** brand or reputation by posting false or misleading information about **you** on social media sites.

**We** will also pay on behalf of the **company** the reasonable and necessary costs incurred to respond to the extortion demand (including costs incurred to procure cryptocurrency for the

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purposes of paying the ransom or in negotiating with the individual or organization making the extortion demand against **you**).

## INSURING CLAUSE 6: SYSTEM DAMAGE AND BUSINESS INTERRUPTION

### SECTION A: SYSTEM DAMAGE AND RECTIFICATION COSTS

**We** agree to reimburse **you** for the additional cost of employing:

a. contract staff or overtime costs for **employees** to rebuild **your** data, including the cost of data re-entry or data re-creation;
b. specialist consultants, including IT forensic consultants, to recover **your** data or applications; and
c. specialist consultants or overtime costs for **employees** working within **your** IT department to reconstitute **your computer systems** to the position they were in immediately prior to the **cyber event**;

as a direct result of a **cyber event** first discovered by **you** during the **period of the policy**.

### SECTION B: HARDWARE REPLACEMENT COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred to replace any computer hardware or tangible equipment forming part of **your computer systems** that have been rendered unusable as a direct result of a **cyber event** first discovered by **you** during the **period of the policy**, provided that replacing the computer hardware or tangible equipment is a more cost effective solution than installing new firmware or software onto **your** existing hardware.

For the purposes of this Section, **we** will also pay the reasonable costs necessarily incurred to purchase and install temporary computer hardware or tangible equipment that are necessary in the interim for the sole purpose of facilitating the recovery of **your** data or systems during the remediation phase of the **cyber event**.

### SECTION C: INCOME LOSS AND EXTRA EXPENSE

**We** agree to reimburse **you** for **your income loss** and **extra expense** sustained during the **indemnity period** as a direct result of an interruption to **your** business activities caused by **your computer systems** downtime arising directly out of a **cyber event**, **system failure** or **operator error**, which is first discovered by **you** during the **period of the policy**, provided that **your computer systems** downtime lasts longer than the **time franchise**.

### SECTION D: EMERGENCY AND ADDITIONAL OPERATIONAL CONTINUITY COSTS

**We** agree to reimburse **you** for any reasonable sums necessarily incurred during the **indemnity period** that are in addition to **your** normal operating expenses and the **extra expense** recoverable under **INSURING CLAUSE 6** (**SECTION C** only):

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a. to source **your** products or services from alternative sources in order to meet contractual obligations to supply **your** customers;
b. to employ contract staff or overtime costs for **employees** in order to continue **your** business activities;
c. to employ specialist consultants, including IT forensic consultants to diagnose the source of the **computer systems** downtime; and
d. for **employees** working overtime within **your** IT department to diagnose and fix the source of the **computer systems** downtime;

to mitigate an interruption to **your** business activities caused by **your computer systems** downtime arising directly out of a **cyber event**, **system failure** or **operator error** which is first discovered by **you** during the **period of the policy**, provided that **your computer systems** downtime lasts longer than the **time franchise**.

For the avoidance of doubt, these additional costs need not be less than **your** expected **income loss** had these measures not been taken.

## SECTION E: VOLUNTARY AND REGULATORY SHUTDOWN

**We** agree to reimburse **you** for **your income loss** and **extra expense** sustained during the **indemnity period** as a result of an interruption to **your** business activities where:

a. it is reasonable and necessary to deliberately take **your computer systems** offline in order to manage a **cyber event** and to mitigate a wider loss, provided that the **cyber event** was first discovered by **you** during the **period of the policy**; or
b. a governmental entity or regulatory body with jurisdiction over **you** expressly requires **you** to take **your computer systems** offline during the **period of the policy** in response to a **cyber event**;

provided that the length of time that **your computer systems** are offline exceeds the **time franchise**.

## SECTION F: DEPENDENT BUSINESS INTERRUPTION

**We** agree to reimburse **you** for **your income loss** and **extra expense** sustained during the **indemnity period** as a direct result of an interruption to **your** business activities arising directly out of any sudden, unexpected and continuous outage of **computer systems** used directly by a **supply chain partner** which is first discovered by **you** during the **period of the policy**, provided that the **computer systems** downtime lasts longer than the **time franchise** and arises directly out of a **cyber event**, **system failure** or **operator error**.

## SECTION G: CONSEQUENTIAL REPUTATIONAL HARM

**We** agree to reimburse **you** for **your income loss** sustained during the **reputational harm period** as a direct result of the loss of current or future customers, caused by damage to **your** reputation as a result of a **cyber event** first discovered by **you** during the **period of the policy**.

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### SECTION H: LOST OR MISSED BIDS

**We** agree to reimburse **you** for **your income loss** sustained during the **reputational harm period** as a result of **your** failure to make or win a bid or request for proposal (RFP) for a contract arising directly from a **cyber event** first discovered by **you** during the **period of the policy**.

### SECTION I: CLAIM PREPARATION COSTS

**We** agree to pay on **your** behalf any reasonable sums necessarily incurred to determine the amount of **your income loss** sustained following an interruption to **your** business activities covered under **INSURING CLAUSE 6**. **We** will only pay these costs where they are incurred with an expert appointed by the **claims manager**.

## INSURING CLAUSE 7: COMMERCIAL GENERAL LIABILITY

### SECTION A: BODILY INJURY AND PROPERTY DAMAGE LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **bodily injury** or **property damage** first occurring during the **period of the policy**, except when it is caused directly by **your technology services**.

**We** will also pay **costs and expenses** on **your** behalf.

### SECTION B: PERSONAL AND ADVERTISING INJURY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **personal injury** or **advertising injury** first occurring during the **period of the policy**, except when it is directly caused by **your technology services**.

**We** will also pay **costs and expenses** on **your** behalf.

### SECTION C: PRODUCTS AND COMPLETED OPERATIONS LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **bodily injury** or **property damage** first occurring during the **period of the policy** caused directly by any **product**.

**We** will also pay **costs and expenses** on **your** behalf.

### SECTION D: POLLUTION LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **bodily injury** or **property damage** caused directly by **pollution** first occurring during the **period of the policy**, on condition that the **pollution** was the direct result of a sudden, identifiable, unintended and unexpected incident.

**We** will also pay **costs and expenses** on **your** behalf.

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## SECTION E: TENANTS' LEGAL LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **property damage** to premises leased to, hired by, on loan to or held in trust by **you** or otherwise in **your** care, custody or control first occurring during the **period of the policy**.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION F: MEDICAL EXPENSES

**We** agree to pay **medical expenses** for **bodily injury** to a **third party** caused by an accident first occurring during the **period of the policy** in the course of **your** business activities, provided that:

a. the **third party**, at the time of the accident, is not entitled to benefits under any workers' compensation or disability benefits law or similar law;
b. the **medical expenses** are incurred and notified to **us** within one year of the date of the accident; and
c. the **third party** submits to examination, at **our** expense, by physicians of **our** choice and as often as **we** reasonably require.

**We** will make these payments regardless of fault.

## SECTION G: EMPLOYEE BENEFITS LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of any act, error or omission committed by **you** or on **your** behalf in the **administration** of **your employee benefit program**.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION H: NON-OWNED AND HIRED AUTOMOBILE LIABILITY

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' **costs and expenses**) as a result of any **claim** arising out of **bodily injury** or **property damage** occurring during the **period of the policy** in the course of **your** business activities resulting from the use or operation by **you** of any automobile that is not owned in whole or in part by the **company** or licensed in the name of the **company**.

**We** will also pay **costs and expenses** on **your** behalf.

## SECTION I: LIABILITY FOR DAMAGE TO HIRED OR LEASED AUTOMOBILES

**We** agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **property damage** to an automobile leased to or hired by **you** from a **third party** first occurring during the **period of the policy** in the course of **your** business activities.

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**We** will also pay **costs and expenses** on **your** behalf.

## INSURING CLAUSE 8: LOSS MITIGATION

In respect of **INSURING CLAUSE 1**, **we** agree to reimburse **you** for any reasonable costs necessarily incurred by **you** with **our** prior written agreement (which will not be unreasonably withheld) in respect of measures taken by **you** to rectify any act, error or omission that resulted in a **claim** or may result in a **claim** for which **you** would be entitled to indemnity under this Policy had these measures not been taken, provided that:

a. these rectification measures are taken for the sole purpose of mitigating the **claim** or avoiding a **claim**; and
b. the costs in respect of these rectification measures taken by **you** are less than the expected value of the **claim**.

**We** will not make any payment under this Insuring Clause in respect of any costs that include any provision for:

a. salaries or other remuneration of **employees**;
b. **your** loss of profit;
c. **your** normal operating expenses; or
d. goodwill payments or other amounts that **you** are not contractually obliged to pay.

## INSURING CLAUSE 9: CRIMINAL REWARD COVER

**We** agree to reimburse **you** for any reasonable sums necessarily incurred with **our** prior written agreement to pay any person or organization, other than:

a. any external or internal auditor of the **company**; or
b. any individual or organization who manages or supervises the individuals stated in a. above;

for information not otherwise available which directly results in the arrest and conviction of any person or organization who is committing or has committed any illegal act directly relating to a claim covered under **INSURING CLAUSES 2**, **3**, **4**, **5** or **6**.

## INSURING CLAUSE 10: REPUTATION AND BRAND PROTECTION

**We** agree to reimburse **you** for any reasonable sums necessarily incurred with **our** prior written agreement (which will not be unreasonably withheld) for the services of a public relations consultancy to avert or mitigate damage to **your** reputation or brand as a direct result of any media report that names **you** and publicizes an act or event that is the subject of a claim for which **you** are entitled to indemnity under this Policy.

## INSURING CLAUSE 11: COURT ATTENDANCE COSTS

**We** agree to reimburse **you** for any reasonable sums necessarily incurred by **you** with **our** prior written agreement (which will not be unreasonably withheld) to attend court or any tribunal,

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arbitration, adjudication, mediation or other hearing in connection with any claim for which **you** are entitled to indemnity under this Policy.

## HOW MUCH WE WILL PAY

The maximum amount payable by **us** in respect of each Section and each Insuring Clause will not exceed the **limit of liability** plus the **incident response limit**.

### YOUR MAXIMUM LIMITS UNDER THIS POLICY

Where any claim is covered under multiple Sections, each Section will cover its part of the claim to the extent of the available **limit of liability**. In the event any Section covering the claim is exhausted, no other Section of this Policy covering the claim will provide additional cover, unless cover is also triggered under **INSURING CLAUSE 3** in which case the **incident response limit** will be available in addition to the **limit of liability**.

Regardless of how many Sections cover any claim only one overall **limit of liability**, plus the **incident response limit**, will be available. The **limit of liability** that will be available is the highest **limit of liability** of the Sections covering the claim. The **limits of liability** available, other than the highest **limit of liability**, and the **incident response limit**, under the Sections covering the claim will always be a part of and not in addition to the highest **limit of liability** plus the **incident response limit**. For the purposes of this paragraph, **INSURING CLAUSES 5**, **8**, **9**, **10** and **11** will each be considered a Section.

Where more than one claim under this Policy arises from the same original cause or single source or event, all of those claims will be deemed to be one claim and only one **limit of liability** and one **incident response limit** will apply in respect of that claim.

### YOUR LIABILITY COVERAGES

**We** may at any time pay to **you** in connection with any **claim** the amount of the **limit of liability** (after deduction of any amounts already paid). Upon that payment being made **we** will relinquish the conduct and control of the **claim** and be under no further liability in connection with that **claim** except for the payment of **costs and expenses** incurred prior to the date of such payment (unless the **limit of liability** is stated to be inclusive of **costs and expenses**).

If **costs and expenses** are stated in the Declarations page to be in addition to the **limit of liability**, or if the operation of local laws require **costs and expenses** to be paid in addition to the **limit of liability**, and if a damages payment in excess of the **limit of liability** has to be made to dispose of any **claim**, **our** liability for **costs and expenses** will be in the same proportion as the **limit of liability** bears to the total amount of the damages payment.

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## YOUR DEDUCTIBLE

**We** will only be liable for that part of each and every claim which exceeds the amount of the **deductible**. If any expenditure is incurred by **us** which falls within the amount of the **deductible**, then **you** will reimburse that amount to **us** upon **our** request.

Where more than one claim under this Policy arises from the same original cause or single source or event all of those claims will be deemed to be one claim and only one **deductible** will apply.

Where cover is provided under multiple Sections or multiple Insuring Clauses only one **deductible** will apply to that claim and this will be the highest **deductible** of the Sections under which cover is provided.

### YOUR AGGREGATE DEDUCTIBLE

Notwithstanding the above, an **aggregate deductible** applies to **INSURING CLAUSES 1**, **2**, **3**, **4**, **5**, **6** and **9** and is the maximum amount **you** will be liable to pay for all claims under these Insuring Clauses. This means **your** payment of any applicable **deductible** in respect of claims under these Insuring Clauses will erode the **aggregate deductible**. Upon total erosion of the **aggregate deductible you** will have no further liability to make any payment under these Insuring Clauses.

For example, if **you** have an **aggregate deductible** of $5,000 and make a claim where costs exceed this amount, should **you** notify a subsequent **claim** under these Insuring Clauses, no **deductible** will apply to that claim and **you** will have no further liability to make any payment under these Insuring Clauses.

### YOUR TIME FRANCHISE

In respect of **INSURING CLAUSE 6** (**SECTIONS C**, **D**, **E** and **F** only), a single **time franchise** and **indemnity period** will apply to each **claim**. Where the same original cause or single source or event causes more than one period of **computer systems** downtime these will be considered one period of **computer systems** downtime whose total duration is equal to the cumulative duration of each individual period of **computer systems** downtime.

## DEFINITIONS

1. **"Administration"** means
    a. advising **employees**, including their dependents and beneficiaries, in respect of **your employee benefit program**;
    b. handling records in respect of **your employee benefit program**; and

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c. effecting enrolment or termination of any **employee's** participation in a plan included in **your employee benefit program**.

2. **"Advertising injury"** means
   a. oral or written publication of defamatory content;
   b. oral or written publication of content that violates a person's right of privacy; or
   c. infringement of copyright, trade dress, slogan or a **third party's** advertising idea;

   in **your** advertising or promotional material.

3. **"Aggregate deductible"** means

   the highest **deductible** of the Sections under **INSURING CLAUSES 1**, **2**, **3**, **4**, **5**, **6** and **9**.

4. **"Approved claims panel providers"** means

   the approved claims panel providers stated in the Declarations page.

5. **"Bodily injury"** means

   death, bodily injury, mental injury, illness or disease.

6. **"Botnetting"** means

   the unauthorized use of **your computer systems** by a **third party** for the purpose of launching a denial of service attack or hacking attack against another **third party**.

7. **"Claim"** means
   a. a written demand for compensation;
   b. a written request for a retraction or a correction;
   c. a cease and desist notice
   d. a threat or initiation of a lawsuit, whether seeking damages, injunctive relief (including a temporary restraining order or preliminary or permanent injunction) or declaratory relief; and
   e. in respect of **INSURING CLAUSES 1** (**SECTION E** only) and **2** (**SECTION D** only), a **regulatory investigation**

8. **"Claims managers"** means

   the claims managers stated in the Declarations page.

9. **"Client"** means

   any **third party** with whom **you** have a contract in place for the supply of **your technology services** in return for a fee, or where a fee would normally be expected to be paid.

10. **"Company"** means

    the company named as the insured in the Declarations page or any **subsidiary**.

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11. **"Computer systems"** means

    all electronic computers including operating systems, software, hardware, microcontrollers and all communication and open system networks and any data or websites wheresoever hosted, off-line media libraries and data back-ups and mobile devices including but not limited to smartphones, iPhones, tablets or personal digital assistants.

12. **"Continuity date"** means

    the **inception date** or if **you** have maintained uninterrupted insurance of the same type with **us**, the date this insurance was first incepted with **us**.

13. **"Costs and expenses"** means

    a. **third party** legal and professional expenses (including disbursements) reasonably incurred in the defense of **claims** or circumstances which could reasonably be expected to give rise to a **claim** or in quashing or challenging the scope of any injunction, subpoena or witness summons;
    b. any post judgment interest; and
    c. the cost of appeal, attachment and similar bonds including bail and penal bonds.

    Subject to all costs and expenses being incurred with the **claims managers**' prior written agreement (which will not be unreasonably withheld).

14. **"Cryptojacking"** means

    the unauthorized use of **your computer systems** by a **third party** for the sole purpose of cryptocurrency mining activities.

15. **"Cyber event"** means

    any actual or suspected:

    a. unauthorized system access, electronic attack on **computer systems**:

        i. used directly by **you**; or
        ii. in respect of **INSURING CLAUSE 6** (**SECTION F** only),used directly by a **supply chain partner**,

    including an attack that utilizes artificial intelligence (AI), denial of service attack, cyber terrorism, hacking attack, Trojan horse, phishing attack, man-in-the-middle attack, application-layer attack, compromised key attack, malware infection (including spyware or ransomware), computer virus or actions of a rogue **employee**.

    b. **privacy breach**

16. **"Cyber incident response line"** means

    the telephone number stated as the cyber incident response line in the Declarations page.

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17. **"Cyber war"** means

    any unauthorized access to or electronic attack on **computer systems**, carried out by or on behalf of a **state**, that directly results in another **state** becoming an **impacted state**.

18. **"Deductible"** means

    the amount stated as the deductible in the Declarations page.

19. **"Employee"** means

    any employee of the **company**, any volunteer working for the **company** and any individual working for the **company** as an independent contractor.

20. **"Employee benefit program"** means

    the **company's** insurance, pension or other benefit programs.

21. **"Expiry date"** means

    the expiry date stated in the Declarations page.

22. **"Extra expense"** means

    **your** reasonable sums necessarily incurred in addition to **your** normal operating expenses to mitigate an interruption to and continue **your** business activities, provided that the costs are less than **your** expected **income loss** sustained had these measures not been taken.

23. **"Impacted state"** means

    any **state** that suffers a major detrimental impact on its:

    a. ability to function; or
    b. defense and security capabilities;

    as a direct result of any unauthorized access to or electronic attack on **computer systems**, carried out by or on behalf of another **state**.

24. **"Inception date"** means

    the inception date stated in the Declarations page.

25. **"Incident response limit"** means

    the highest individual limit available, where cover is applicable, under **INSURING CLAUSE 3** as stated in the Declarations page.

26. **"Income loss"** means

    **your** income that, had the **cyber event**, **system failure** or **operator error** which gave rise to the claim not occurred, would have been generated directly from **your** business activities (less sales tax) during the **indemnity period** or **reputational harm period**, less:

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a. actual income (less sales tax) generated directly from **your** business activities during the **indemnity period** or **reputational harm period**; and
b. any cost savings achieved as a direct result of the reduction in income.

27. **"Indemnity period"** means

the period starting from the first occurrence of:

a. the **computer systems** downtime; or
b. the downtime of computer systems used directly by a **supply chain partner**;

and lasting up to the period stated as the indemnity period in the Declarations page.

28. **"Intellectual property rights"** means

any **intellectual property right** including, but not limited to, copyright, trademark (including any trade name that has been registered as a trademark), trade dilution, trade dress, design rights, domain name rights, moral rights, service mark or service name.

"**Intellectual property rights**" do not include any patent.

29. **"Limit of liability"** means

if expressed in the Declarations page as:

a. "limit of liability", the maximum amount payable by **us** in respect of each **claim**; or
b. "aggregate limit of liability", the maximum amount payable by **us** in respect of all **claims**.

30. **"Loss"** means

any direct financial loss sustained by the **company**.

31. **"Medical expenses"** means

reasonable and necessary expenses for:

a. first aid administered at the time of an accident;
b. medical, surgical, x-ray and dental services, including prosthetic devices; and
c. ambulance, hospital, professional nursing and funeral services.

32. **"Operator error"** means

any unintentional human error in entering or amending electronic data within **your computer systems** or in the upgrade, maintenance or configuration of those **computer systems**, where the proximate cause is not physical damage to any tangible equipment or property.

"**Operator error**" does not mean any error in the design or architecture of any **computer systems**.

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33. **"Payment card breach"** means

    an actual or suspected unauthorized disclosure of payment card data stored or processed by **you** arising out of an electronic attack, accidental disclosure or the deliberate actions of a rogue **employee**.

    "**Payment card breach**" does not mean a situation where payment card data is deliberately shared with or sold to a **third party** with the knowledge and consent of a **senior executive officer**.

34. **"Period of the policy"** means

    the period between the **inception date** and the **expiry date** or until the Policy is canceled in accordance with **CONDITION 6**.

35. **"Personal injury"** means
    a. false arrest, detention or imprisonment;
    b. malicious prosecution; or
    c. wrongful entry into, or eviction of a person from, a room, dwelling or premises that the person occupies.

36. **"Pollutants"** means

    any solid, liquid, gaseous, radiological or thermal irritant, toxic or hazardous substance, or contaminant including, but not limited to smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste materials, including recycled, reconditioned or reclaimed materials.

37. **"Pollution"** means

    the discharge, dispersal, release, migration, seepage or escape of **pollutants**.

38. **"Premium"** means

    the amount stated as the premium in the Declarations page and any subsequent adjustments.

39. **"Privacy breach"** means

    an actual or suspected unauthorized disclosure of information arising out of an electronic attack, accidental disclosure, theft or the deliberate actions of a rogue **employee** or **third party**, including Personally Identifiable Information (PII), Protected Health Information (PHI) and payment card information.

    "**Privacy breach**" does not mean a situation where information is deliberately shared with or sold to a **third party** with the knowledge and consent of a **senior executive officer**.

40. **"Product"** means

    any tangible property, other than a **technology product**, that has been manufactured, altered, distributed or installed by **you** or on **your** behalf.

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41. **"Property damage"** means

    direct physical damage to, destruction of, loss of possession or loss of use of tangible property.

42. **"Regulatory investigation"** means

    a formal hearing, official investigation, examination, inquiry, legal action or any other similar proceeding initiated by a governmental, regulatory, law enforcement, professional or statutory body against **you**.

43. **"Reputational harm period"** means

    the period starting from when the **cyber event** is first discovered and lasting for the period stated as the reputational harm period in the Declarations page.

44. **"Retroactive date"** means

    the retroactive date stated in the Declarations page.

45. **"Senior executive officer"** means

    board members, C-level executives, in-house lawyers and risk managers of the **company**.

46. **"State"** means

    sovereign state.

47. **"Subsidiary"** means

    any entity which the **company** has majority ownership of, meaning more than 50% ownership, on or before the **inception date**.

48. **"Supply chain partner"** means

    any:

    a. **third party** that provides **you** with hosted computing services including infrastructure, platform, file storage and application level services; or
    b. **third party** listed as a supply chain partner in an endorsement attaching to this policy which **we** have issued.

49. **"System failure"** means

    any sudden, unexpected and continuous downtime of **your computer systems** which renders them incapable of supporting their normal business function and is caused by an application bug, an internal network failure or hardware failure.

    However, in respect of **INSURING CLAUSE 6** (**SECTION F** only), **system failure** also means any sudden, unexpected and continuous downtime of **computer systems** used directly by a **supply chain partner** which renders them incapable of supporting their normal business function and is caused by an application bug, an internal network failure or hardware failure.

    "**System failure**" does not mean a **cyber event**.

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50. **"Technology product"** means

    any hardware, or any related electronic product, equipment, or device that is designed, manufactured, altered, repaired, distributed or installed, licensed, leased or sold by **you** or on **your** behalf.

51. **"Technology services"** means

    the supply by **you** or on **your** behalf of **technology products** or technology services, including but not limited to software development, software installation and maintenance, hardware design, hardware installation and maintenance, artificial intelligence development, artificial intelligence services, data processing, internet services, data and application hosting, **computer systems** analysis, consulting, training, programming, systems integration, IT support and network management, and as more fully described in the Declarations page.

52. **"Third party"** means

    any person who is not an **employee** or any legal entity that is not the **company**.

53. **"Time franchise"** means

    the number of hours stated as the time franchise in the Declarations page.

54. **"War"** means

    any physical:

    a. war, invasion, acts of foreign enemies, hostilities or warlike operations (whether war is declared or not), civil war, rebellion, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power; or
    b. action taken in controlling, preventing, suppressing or in any way relating to a. above.

55. **"We/our/us"** means

    the underwriters stated in the Declarations page.

56. **"Withheld fees"** means

    any contractually due fee that **your client** refuses to pay **you**, but excluding any part of the fee that represents **your** profit or mark-up or liability for taxes.

57. **"You/your"** means

    a. the **company**;
    b. any past, present or future **employees**;
    c. the estates, heirs, legal representatives or assigns of any **employee** in the event of their death, incapacity, insolvency or bankruptcy but only with respect to any act, error or omission committed or alleged to have been committed by the **employee** while acting in their capacity as **employee**; and
    d. the parent, spouse, domestic partner, civil partner or child of any **employee** but only in respect of any **claim** made against them by reason of:

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i. their status as parent, spouse, domestic partner, civil partner or child of the **employee**; or
ii. their ownership or interest in property which the claimant seeks as recovery for an alleged act, error or omission committed by the **employee** while acting in their capacity as **employee**.

## EXCLUSIONS

**We** will not make any payment under this Policy:

### EXCLUSIONS RELATING TO PROFESSIONAL LIABILITY

In respect of **INSURING CLAUSE 1** only:

1. **Unauthorized funds transfer**

   arising directly out of any authorized or unauthorized electronic transfer of funds or financial assets, including where this results in any outstanding debt.

### EXCLUSIONS RELATING TO COMMERCIAL GENERAL LIABILITY

In respect of **INSURING CLAUSE 7** only:

2. **Communicable diseases**

   arising directly or indirectly out of, or in any way relating to any actual, threat or fear of any pathogen or disease, including any virus, bacterium, parasite or variation of these, which can be transmitted by any means directly or indirectly from any organism to another organism and can cause, or have the potential to cause:

   a. damage to human health or welfare; or
   b. physical damage or destruction to tangible property, including the deterioration, loss of use or reduction in value or marketability of the tangible property.

3. **Cyber events**

   arising directly or indirectly out of any **cyber event**.

4. **Faulty workmanship**

   for the cost to repair or replace, including any ensuing financial loss:

   a. that part of any property that has been damaged by **you**, or a **third party** operating on **your** behalf, during its construction, distribution or installation;
   b. that part of any property as a direct result of faulty workmanship by **you**, or a **third party** operating on **your** behalf, during its construction or installation; or
   c. any undamaged property that contains any **product**, unless the **product** which the property contains has been damaged as a direct result of a sudden, unintended and unexpected incident after it has left **your** care, custody or control.

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5. **Financial loss**

   arising directly or indirectly out of **third party** financial loss, other than **third party** financial loss directly resulting from **bodily injury**, **personal injury**, **advertising injury** or **property damage**.

6. **Land or water**

   arising directly or indirectly from damage by any description to land or water within or below the boundaries of any land or premises presently or at any time previously owned or leased by **you** or otherwise in **your** care, custody or control.

7. **Long term hired or leased automobiles**

   arising directly or indirectly out of any **bodily injury** or **property damage** caused:

   a. whilst driving an automobile which has been on hire from or leased to **you** by a **third party** for more than 30 consecutive days; or
   b. by any trailer attached to an automobile stated in a. above.

8. **Marine and aviation**

   arising directly or indirectly from the ownership, possession or use by **you**, or on **your** behalf, of any:

   a. watercraft, other than any hovercraft, in excess of 10 meters in length; or
   b. aircraft, drone, hovercraft, offshore installation, offshore rig or offshore platform.

9. **Property in your care, custody or control**

   arising directly or indirectly out of **property damage** to **third party** property which is in **your** care, custody or control.

   However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTIONS E**, **H** and **I** only).

In respect of **INSURING CLAUSE 7, SECTION B**:

10. **Content advertised prior to the continuity date**

    arising directly or indirectly out of any advertisement that was first published prior to the **continuity date**.

In respect of **INSURING CLAUSE 7, SECTION G**:

11. **Benefit laws**

    arising directly or indirectly out of **your** failure to comply with the mandatory provisions of any law concerning workers' compensation, unemployment insurance, social security, disability benefits or pension benefits.

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12. **Employee benefit program advice**

    arising directly or indirectly from advice given to any person to participate or not to participate in any plan included in **your employee benefit program** or the failure of any investment to perform as represented by **you**.

## EXCLUSIONS RELATING TO ALL INSURING CLAUSES

13. **Advertising injury**

    arising directly or indirectly out of **advertising injury**.

    However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTION B** only).

14. **Antitrust**

    for or arising out of any actual or alleged antitrust violation, restraint of trade, unfair competition, false, deceptive or unfair trade practices, violation of consumer protection laws or false or deceptive advertising other than any covered portion of any **claim** based on **your** alleged unauthorized use of a **third party's** trademark.

15. **Asbestos**

    arising directly or indirectly out of the manufacturing, mining, use, sale, installation, removal, distribution of or exposure to asbestos, materials or products containing asbestos or asbestos fibers or asbestos dust.

16. **Associated companies**

    a. in respect of any **claim** made by any company, firm or partnership in which the **company** has greater than a 15% executive or financial interest, unless the **claim** emanates from an independent **third party**;
    b. in respect of any **claim** made by any company, firm, partnership or individual which has greater than a 15% executive or financial interest in the **company**, unless the **claim** emanates from an independent **third party**;
    c. arising out of or resulting from any of **your** activities as a trustee, partner, officer, director or employee of any employee trust, charitable organization, corporation, company or business other than that of the **company**; or
    d. in respect of any **claim** made by or on behalf of the **company** against a **third party**.

17. **Auto**

    arising directly or indirectly from the ownership, possession or use of any motor vehicle or trailer other than **bodily injury** or **property damage**:

    a. caused by the use of any tool or equipment forming part of or attached to or used in connection with any motor vehicle or trailer;
    b. occurring beyond the limits of any carriageway or thoroughfare and caused by the loading or unloading of any motor vehicle or trailer;

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c. arising out of the use of any motor vehicle or trailer temporarily in **your** custody or control for the purpose of parking; or
d. occurring beyond the limits of any carriageway or thoroughfare and caused by the use of any unlicensed vehicle, including but not limited to snowmobiles and all-terrain vehicles, in the course of **your** business activities;

provided always that **we** will not make any payment in respect of any legal liability for which compulsory insurance or security is required by legislation or for which a government or other authority has accepted responsibility.

However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTIONS H** and **I** only).

18. **Betterment**

which results in **you** being in a better financial position or **you** benefitting from upgraded versions of **your computer systems** as a direct result of the event which gave rise to the **claim** under this policy.

However, this Exclusion will not apply to **INSURING CLAUSE 6** (**SECTION B** only).

19. **Bodily injury**

in respect of **INSURING CLAUSES 1** and **2**, arising directly or indirectly out of **bodily injury**.

However, this Exclusion will not apply to:

a. **INSURING CLAUSES 1** (**SECTION A** only) and **2** (**SECTION F** only); and
b. **INSURING CLAUSES 1** (**SECTION D** only) and **2** (**SECTIONS A**, **B** and **C** only) for any **claim** as a direct result of mental injury or emotional distress.

20. **Breach of contract**

arising directly out of any breach of contract.

However, this Exclusion will not apply to:

a. **INSURING CLAUSE 1** (**SECTIONS A**, **B** and **D** only); and
b. **INSURING CLAUSE 7**, if liability would have attached in the absence of that contract.

21. **Chargebacks**

for any credit card company or bank, wholly or partially, reversing or preventing a payment transaction, unless specifically covered under **INSURING CLAUSE 2** (**SECTION E** only) for which **you** have purchased coverage.

22. **Collection of private data without consent**

arising directly or indirectly out of any actual or alleged failure to obtain consent or agreement from any private individual before collecting, storing or processing any of their

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personal information, including personally identifiable information (PII), internet search history and internet browsing habits.

23. **Core infrastructure failure**

    in respect of **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** and **9**, arising directly or indirectly out of any:

    a. failure, material degradation or termination of any core element of the internet, telecommunications or GPS infrastructure that results in a regional, countrywide or global outage of the internet or telecommunications network, including a failure of the core DNS root servers, satellite network or the IP addressing system or an individual state or non-state actor disabling all or part of the internet;
    b. failure in the power supply, including where the failure is caused by any surge or spike in voltage, electrical current or transferred energy; or
    c. failure, disruption or reduction in the supply of utilities, including telecommunications, gas and water infrastructure or services.

24. **Cryptocurrency**

    arising directly or indirectly out of any:

    a. theft or loss of; or
    b. provision of, or failure to provide, any advice, consultancy or any other services or activities relating to;

    any crypto asset, including cryptocurrency, utility tokens, securities tokens, ecosystem tokens or any other type of digital currency.

25. **Directors and officers liability**

    arising out of any personal liability incurred by **your senior executive officers** when they are acting in that capacity or managing **you**, or arising from any statement, representation or information regarding **your** business contained within any accounts, reports or financial statements.

    However, this Exclusion will not apply to **INSURING CLAUSE 2** (**SECTION C** only).

26. **Employers' liability**

    arising directly or indirectly out of **bodily injury** to **your employees**.

27. **Employment disputes**

    arising directly or indirectly out of any:

    a. employer-employee relations, policies or practices;
    b. actual or alleged refusal to employ any person;
    c. actual or alleged breach by any **employee** of any term or condition of any express or implied contract between them and any past employer of theirs, including breaching

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any restrictive covenant, covenant not to compete, non-disparagement agreement, confidentiality agreement or non-solicitation agreement; or

d. actual or alleged conduct by **you** that defames, libels, slanders, disparages or harasses any past employer of any **employee** or interferes with any past, present or prospective employment or contractual relationship between any **employee** and any past employer of theirs.

28. **ERISA**

based upon the Employment Retirement Income Security Act of 1974, and any amendment thereto, or any rules or regulations promulgated thereunder.

29. **Extended warranty**

arising directly or indirectly out of any extended warranty agreement, unless liability would have attached in the absence of that agreement.

30. **Insolvency**

arising out of or relating directly or indirectly to **your** insolvency or bankruptcy, or the insolvency or bankruptcy of any **third party**. However, **your** insolvency will not relieve **us** of any of **our** legal obligations under this contract of insurance where this insolvency does not give rise to a claim under this Policy.

31. **Intellectual property rights and defamation**

arising directly or indirectly out of defamation or any infringement of **intellectual property rights**.

However, this Exclusion will not apply to **INSURING CLAUSES 1** (**SECTION D** only) or **7** (**SECTION B** only).

32. **Joint venture**

arising directly or indirectly out of any:

a. activities related to a joint business venture between **you** and any **third party** or any entity that is owned or controlled in part by **you** or any **third party** related to the joint business venture; or

b. **claim** made against **you** by any **third party** related to a joint business venture or any entity that is owned or controlled in part by any **third party** related to the joint business venture.

33. **Known claims and circumstances**

arising out of any actual or suspected **cyber event**, **claim**, **loss**, **operator error**, **system failure** or circumstance which might give rise to a claim under this Policy which a **senior executive officer** was aware of, or ought reasonably to have been aware of, prior to the **continuity date**, including any claim or circumstance notified to any other insurer.

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34. **Legal action**

    where any legal action is brought outside the legal action territories stated in the Declarations page, or where an action is brought within those territories to enforce a judgment outside of those territories whether by way of reciprocal agreement or otherwise.

35. **Liquidated damages, service credits and penalty clauses**

    for liquidated damages or service credits, or arising out of penalty clauses unless **you** would have been liable in the absence of any contract stipulating the liquidated damages or service credits or penalty clauses.

36. **Loss of economic value**

    for the reduction in economic or market value (including loss of potential future sales) of any of **your** intellectual property assets.

37. **Misleading advertising**

    arising directly or indirectly from any advertisement, promotion or product description that is actually or alleged to be false or misleading.

    However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTION B** only).

38. **Nuclear**

    arising directly or indirectly from or contributed to by:

    a. ionizing radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel; or
    b. the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component.

39. **Other insurance**

    for which **you** are entitled to indemnity under any other insurance except for:

    a. any additional sum which is payable over and above the other insurance where that insurance has been declared to **us**; or
    b. any contribution that **we** are obliged to make by law and that contribution will be in proportion to the indemnity available under the Policies.

40. **Patent infringement**

    arising directly or indirectly out of the actual or alleged infringement or inducement of infringement of any patent, including any application for a patent that has not yet been granted.

41. **Payment card industry related fines, penalties and assessments**

    for fines, penalties and card brand assessments, including fraud recoveries, operational reimbursements, non-cooperation costs and case management fees which **you** become

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legally obliged to pay **your** acquiring bank or payment processor as a direct result of a **payment card breach**.

However, this Exclusion will not apply to **INSURING CLAUSE 2** (**SECTION E** only).

42. **Personal injury**

    arising directly or indirectly out of **personal injury**.

    However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTION B** only).

43. **Personal liability**

    in respect of any action brought against any past, present or future **employee**, unless arising directly out of work performed for the **company**.

44. **Pollution**

    arising directly or indirectly out of **pollution**.

    However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTION D** only).

45. **Product recall**

    for the costs to withdraw, recall, dispose, remove, repair, adjust, alter, recondition, replace or reinstate, any product or part of a product.

    However, this Exclusion will not apply to **INSURING CLAUSE 1** where **you** are legally liable for those costs as the direct result of any act, error or omission committed by **you**.

46. **Products liability**

    arising directly out of any **bodily injury** or **property damage** caused directly by any **product**.

    However, this Exclusion will not apply to **INSURING CLAUSE 7** (**SECTION C** only).

47. **Property damage**

    in respect of **INSURING CLAUSES 1**, **2**, **3**, **4**, **5**, **6** and **9**, arising directly or indirectly out of **property damage**.

    However, this Exclusion will not apply to:

    a. **INSURING CLAUSE 1** (**SECTION A** only)
    b. **INSURING CLAUSE 6** (**SECTION B** only), in respect of the cost of repairing any hardware or replacing any tangible property or equipment that forms part of **your computer systems**.

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48. **Property perils**

    in respect of **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** and **9**, arising directly or indirectly out of any fire, earthquake or earth movement of any kind, flood, hail, hurricane, lightning strike, solar storm, tornado, tsunami, volcano, wildfire or windstorm.

49. **Related or associated company confidential business information**

    arising directly or indirectly out of any actual or alleged misappropriation, unauthorized use or disclosure by any **employee** of any idea, trade secret or other confidential business information which they were a party to or which they otherwise had possession of prior to being employed by the **company**.

    However, this Exclusion will not apply to **INSURING CLAUSE 2** (**SECTION A** only) solely in respect of any **claim** arising out of any actual or suspected electronic attack or unauthorized system access by any **third party**.

50. **Retroactive date**

    in respect of **INSURING CLAUSES 1** and **7** (**SECTION G** only), arising out of any act, error or omission committed or alleged to have been committed on or before the **retroactive date**, or any related or continuing acts, errors or omissions where the act, error or omission was first committed or alleged to have been first committed on or before the **retroactive date**.

51. **RICO**

    for any actual or alleged violations of the Racketeer Influenced and Corrupt Organization Act and any subsequent amendments to this Act.

52. **Securities violations**

    for any actual or alleged violation of any laws or regulations relating to the offer or sale of securities.

53. **Seizure of illegal property**

    arising from an order by a public or government authority which deprives **you** of the use or value of **your** property or arising from acts of contraband or illegal transportation or illegal trade.

54. **Terrorism**

    arising directly or indirectly out of:

    a. any act or threat of force or violence by an individual or group, whether acting alone or on behalf of or in connection with any organization or government, committed for political, religious, ideological or similar purposes including the intention to influence any government or to put the public, or any section of the public, in fear; or
    b. any action taken in controlling, preventing, suppressing or in any way relating to a. above.

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However, this Exclusion does not apply to a **cyber event** affecting **your computer systems** or a **supply chain partner's computer systems**.

55. **Toxic mold**

    arising directly or indirectly from the toxic properties of any fungus, mold, mildew or yeast.

56. **Uninsurable fines**

    for fines, penalties, civil or criminal sanctions, and for multiple, punitive or exemplary damages, unless insurable by law.

57. **Unjust enrichment**

    for that part of any **claim** that results in **you** being in a better financial position as a direct result of **your** act, error or omission than **you** would have been if **you** had not committed the act, error or omission.

    However, this Exclusion will not apply to any refund of any fee, other than the part of the fee that represents **your** profit or mark-up or liability for taxes.

58. **Unlawful surveillance**

    in respect of any actual or alleged eavesdropping, wiretapping, or unauthorized audio or video recording committed by **you** or by a **third party** on **your** behalf.

59. **Unsolicited communications**

    arising directly or indirectly from any actual or alleged violation of:

    a. the CAN-SPAM Act of 2003 or any subsequent amendments to that Act;
    b. the Telephone Consumer Protection Act (TCPA) of 1991 or any subsequent amendments to that Act; or
    c. any other law, regulation or statute relating to unsolicited communication, distribution, sending or transmitting of any communication via telephone or any other electronic or telecommunications device.

    However, this Exclusion will not apply to **INSURING CLAUSE 2** (**SECTION A** only).

60. **War and cyber war**

    arising directly or indirectly out of:

    a. **war**; or
    b. **cyber war**.

    However, part b. above will not apply to:

    a. **INSURING CLAUSE 3** (**SECTION A** only); and
    b. that part of any claim relating to any **computer systems** which are physically located outside of an **impacted state**.

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61. **Website and application content accessibility**

    arising directly or indirectly out of the actual or alleged violation of any laws, regulations or guidelines relating to the accessibility of **your** website or application content, or any website or application content **you** have created for any **third party**.

62. **Willful or dishonest acts of senior executive officers**

    arising directly or indirectly out of any willful, criminal, malicious or dishonest act, error or omission by a **senior executive officer** as determined by final adjudication, arbitral tribunal or written admission.

## CONDITIONS

1. **What you must do in the event of a claim or cyber incident**

   If any **senior executive officer** becomes aware of any incident which may reasonably be expected to give rise to a claim under this Policy **you** must:

   a. notify the **claims managers** as soon as is reasonably practicable (in respect of cyber incidents, a telephone call to **our cyber incident response line** will constitute notification). However, this notification must be made no later than the end of any applicable extended reporting period;
   b. in respect of **INSURING CLAUSES 4** and **5**, report the theft or incident as soon as is reasonably practicable to the appropriate law enforcement authorities and provide **us** with a copy of this report on **our** request;
   c. in respect of **INSURING CLAUSE 5**, not incur any costs or promise any payment, including any ransom payment, without **our** prior written agreement (which will not be unreasonably withheld);
   d. not admit liability for or settle or make or promise any payment or incur any **costs and expenses** without **our** prior written agreement (which will not be unreasonably withheld); and
   e. provide **us** in a timely manner with any other information and assistance that **we** may request.

   In respect of **INSURING CLAUSES 1** and **7** (**SECTION G** only), if **you** notify an incident that **we** agree is reasonably expected to give rise to a **claim**, **we** will accept any **claim** that arises out of the incident as being notified under this Policy.

   **We** require **you** to provide full details of the incident, including but not limited to:

   a. the time, place and nature of the incident;
   b. the manner in which **you** first became aware of this incident;

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c. the reasons why **you** believe that this incident could give rise to a claim under this Policy;
d. the identity of the potential claimant; and
e. an indication as to the size of the claim that could result from this incident.

In respect of **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** and **9**, if **you** discover a **cyber event you** may only incur costs, other than costs incurred to respond to an extortion demand (including any ransom payment), without **our** prior written consent within the first 72 hours following the discovery and any **third party** costs incurred must be with a company forming part of the **approved claims panel providers**. All other costs may only be incurred with the prior written consent of the **claims managers** (which will not be unreasonably withheld).

2. Additional insureds

**We** will indemnify any **third party** as an additional insured under this Policy, but only in respect of sums which they become legally obliged to pay (including liability for claimants' costs and expenses) as a result of a **claim** arising solely out of an act committed by **you**, provided that:

a. **you** contracted in writing to indemnify the **third party** for the **claim** prior to it first being made against them; and
b. had the **claim** been made against **you**, then **you** would be entitled to indemnity under this Policy.

Before **we** indemnify any additional insured they must:

a. prove to **us** that the **claim** arose solely out of an act committed by **you**; and
b. fully comply with **CONDITION 1** as if they were **you**.

Where **we** indemnify a **third party** as an additional insured under this Policy, this Policy will be primary and non-contributory to the **third party's** own insurance, but only if **you** and the **third party** have entered into a contract that contains a provision requiring this.

Where a **third party** is treated as an additional insured as a result of this Condition, any **claim** made by that **third party** against **you** will be treated by **us** as if they were a **third party** and not as an insured.

3. Agreement to pay claims (duty to defend)

**We** have the right and duty to take control of and conduct in **your** name the investigation, settlement or defense of any **claim**. **We** will not have any duty to pay **costs and expenses** for any part of a **claim** that is not covered by this Policy.

**You** may ask the **claims managers** to consider appointing **your** own lawyer to defend the **claim** on **your** behalf and the **claims managers** may grant **your** request if they consider **your**

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lawyer is suitably qualified by experience, taking into account the subject matter of the **claim**, and the cost to provide a defense.

**We** will endeavor to settle any **claim** through negotiation, mediation or some other form of alternative dispute resolution and will pay on **your** behalf the amount **we** agree with the claimant. If **we** cannot settle using these means, **we** will pay the amount which **you** are found liable to pay either in court or through arbitration proceedings, subject to the **limit of liability**.

**We** will not settle any **claim** without **your** consent. If **you** refuse to provide **your** consent to a settlement recommended by **us** and elect to continue legal proceedings in connection with the **claim**, any further **costs and expenses** incurred will be paid by **you** and **us** on a proportional basis, with 50% payable by **us** and 50% payable by **you**. As a consequence of **your** refusal, **our** liability for the **claim**, excluding **costs and expenses**, will not be more than the amount for which the **claim** could have been settled.

4. Application warranty

   **You** agree that all statements made by **you** in the application form, including any renewal application form, and any supplemental materials **you** have supplied in support of the application for insurance, are **your** agreements and representations to **us** and the Policy is issued in reliance upon that information. The misrepresentation or non-disclosure of any matter by **you** or **your** agent will render this Policy null and void and relieve **us** from all liability under this Policy.

5. Calculation of business interruption losses

   Following an interruption to **your** business activities covered under **INSURING CLAUSE 6** (**SECTIONS C**, **D**, **E** or **F** only), **you** must provide **us** with **your** calculation of the loss including:

   a. how the loss has been calculated and what assumptions have been made; and
   b. supporting documents including account statements, sales projections and invoices.

6. Cancellation

   This Policy may be canceled with 30 days written notice by either **you** or **us**.

   If **you** give **us** notice of cancellation, the return **premium** will be in proportion to the number of days that the Policy is in effect. However, if **you** have made a claim under this Policy there will be no return **premium**.

   If **we** give **you** notice of cancellation, the return **premium** will be in proportion to the number of days that the Policy is in effect.

   **We** also reserve the right of cancellation in the event that any amount due to **us** by **you** remains unpaid more than 60 days beyond the **inception date**. If **we** exercise this right of cancellation it will take effect from 14 days after the date the written notice of cancellation is issued.

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The Policy Administration Fee will be deemed fully earned upon inception of the Policy.

7. Continuous cover

In respect of **INSURING CLAUSES 1** and **7** (**SECTION G** only), if during the period of a previous renewal of this Policy **you** neglected, through error or oversight only, to report to **us** an incident that might give rise to a **claim**, then provided **you** have maintained uninterrupted insurance of the same type with **us** since expiry of the previous renewal of this Policy, **we** will permit the incident to be reported to **us** under this Policy and **we** will indemnify **you** under this Policy in respect of any **claim** that arises out of the incident, provided:

a. the indemnity will be subject to the applicable limit of liability of the previous renewal of this Policy under which the incident should have been reported to **us** or the applicable **limit of liability**, whichever is the lower;
b. **we** may reduce the indemnity entitlement by the monetary equivalent of any prejudice which has been suffered as a result of the delayed notification; and
c. the indemnity will be subject to all other terms and conditions of this Policy.

**We** require **you** to provide full details of the incident, including but not limited to:

a. the time, place and nature of the incident;
b. the manner in which **you** first became aware of this incident;
c. reasons why **you** believe that this incident could give rise to a **claim**;
d. the identity of the potential claimant; and
e. an indication as to the size of the **claim** that could result from this incident.

For the avoidance of doubt, this Condition only applies to incidents that might give rise to a **claim**.

8. Cross liability and severability

In respect of **INSURING CLAUSE 7** only, where there is more than one entity insured under this Policy, and subject to the **limit of liability**, any **claim** made by one insured entity against another insured entity will be treated as if they are a **third party** and knowledge possessed by one insured entity will not be imputed to any other insured entity.

9. Dispute resolution

All disputes or differences between **you** and **us** will be referred to mediation or arbitration and will take place in the country of registration of the company named as the insured in the Declarations page.

In respect of any arbitration proceeding **we** will follow the applicable rules of the arbitration association in the country where the company stated as the insured in the Declarations page is registered, the rules of which are deemed incorporated into this Policy by reference to this Condition. Unless the applicable arbitration association rules state otherwise, a single

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arbitrator will be appointed who will be mutually agreed between **you** and **us**. If **you** and **we** cannot agree on a suitable appointment then **we** will refer the appointment to the applicable arbitration association.

Each party will bear its own fees and costs in connection with any mediation or arbitration proceeding but the fees and expenses of the arbitrator will be shared equally between **you** and **us** unless the arbitration award provides otherwise.

Nothing in this Condition is intended to remove **your** rights under **CONDITION 22**. However, if a determination is made in any mediation or arbitration proceeding, **CONDITION 22** is intended only as an aid to enforce this determination.

10. **Fraudulent claims**

If it is determined by final adjudication, arbitral tribunal or written admission by **you**, that **you** notified **us** of any claim knowing it to be false or fraudulent in any way, **we** will have no responsibility to pay that claim, **we** may recover from **you** any sums paid in respect of that claim and **we** reserve the right to terminate this Policy from the date of the fraudulent act. If **we** exercise this right, **we** will not be liable to return any **premium** to **you**. However, this will not affect any non-fraudulent claim under this Policy which has been previously notified to **us**.

11. **Extended reporting period**

An extended reporting period of 60 days following the **expiry date** will be automatically granted at no additional premium. This extended reporting period will cover, subject to all other terms, conditions and exclusions of this Policy:

a. in respect of **INSURING CLAUSES 1** and **7** (**SECTION G** only), any **claim** first made against **you** during the **period of the policy** and reported to **us** during this extended reporting period;
b. in respect of **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** and **9**, any **cyber event**, **loss**, **operator error** or **system failure** first discovered by **you** during the **period of the policy** and reported to **us** during this extended reporting period; and
c. any circumstance that a **senior executive officer** became aware of during the **period of the policy** and reports to **us** during this extended reporting period.

No claim will be accepted by **us** in this 60 day extended reporting period if **you** are entitled to indemnity under any other insurance, or would be entitled to indemnity under such insurance if its limit of liability was not exhausted.

12. **Optional extended reporting period**

If **we** or **you** decline to renew or cancel this Policy then **you** will have the right to have issued an endorsement providing an optional extended reporting period for the duration stated in the Declarations page which will be effective from the cancellation or non-renewal date.

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This optional extended reporting period will cover, subject to all other terms, conditions and exclusions of this Policy:

a. in respect of **INSURING CLAUSES 1** and **7** (**SECTION G** only), any **claim** first made against **you** and reported to **us** during this optional extended reporting period, provided that the **claim** arises out of any act, error or omission committed prior to the date of cancellation or non-renewal; and
b. in respect of **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** and **9**, any **cyber event**, **loss**, **operator error** or **system failure** first discovered by **you** during this optional extended reporting period, provided that the **cyber event**, **loss**, **operator error** or **system failure** first occurred during the **period of the policy**.

If **you** would like to purchase the optional extended reporting period **you** must notify **us** and pay **us** the optional extended reporting period premium stated in the Declarations page within 30 days of cancellation or non-renewal.

The right to the optional extended reporting period will not be available to **you** where cancellation or non-renewal by **us** is due to non-payment of the **premium** or **your** failure to pay any amounts in excess of the applicable **limit of liability** or within the amount of the applicable **deductible** as is required by this Policy in the payment of claims.

At the renewal of this Policy, **our** quotation of different **premium**, **deductible**, limits of liability or changes in policy language will not constitute non-renewal by **us**.

13. Maintenance of employee automobile liability insurance

It is a condition precedent to indemnity under **INSURING CLAUSE 7** (**SECTIONS H** and **I** only) that all **employees** who operate an automobile in the course of **your** business activities will maintain in full force and effect for the **period of the policy** primary automobile liability insurance in an amount equal to, or greater than, the minimum primary automobile liability limits required in the state of registration of the automobile. If **you** make a **claim** under **INSURING CLAUSE 7** (**SECTIONS H** and **I** only) and the **employee** has failed to meet these requirements then this Policy will only respond to provide excess coverage as though the requirements had been met, whereby **you** agree to pay all sums within and up to the required minimum limit.

14. Mergers and acquisitions

If **you** acquire an entity during the **period of the policy** whose annual revenue does not exceed 20% of the **company's** annual revenue, as stated in its most recent annual financial statements, cover is automatically extended under this Policy to include the entity as a **subsidiary**.

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If **you** acquire an entity during the **period of the policy** whose annual revenue exceeds 20% of the **company's** annual revenue, as stated in its most recent annual financial statements, cover is automatically extended under this Policy to include the entity as a **subsidiary** for 45 days.

**We** will consider providing cover for the acquired entity after the period of 45 days if:

a. **you** give **us** full details of the entity within 45 days of its acquisition; and
b. **you** accept any amendment to the terms and conditions of this Policy and agree to pay any additional **premium** required by **us**.

In the event **you** do not comply with a. and b. above, cover will automatically terminate for the entity 45 days after the date of its acquisition.

If **we** agree to cover the acquired entity **we** will issue a mergers and acquisitions endorsement noting the acquired entity has cover under this Policy. If no endorsement is issued cover will automatically terminate for the entity 45 days after the date of its acquisition

Cover for any acquired entity is only provided under this Policy for any act, error or omission committed or alleged to have been committed on or after the date of its acquisition.

No cover will be automatically provided under this Policy for any acquired entity:

a. whose business activities are materially different from **your** business activities;
b. that has been the subject of any lawsuit, disciplinary action or regulatory investigation in the 3 year period prior to its acquisition; or
c. that has experienced a **cyber event** in the 3 years period prior to its acquisition, if **you** have purchased **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** or **9** and the **cyber event** cost more than the highest **deductible** of **INSURING CLAUSES 2**, **3**, **4**, **5**, **6** or **9**.

15. **Run-off cover**

In the event **you** consolidate, merge with or are acquired by another entity during the **period of the policy**, then cover under this Policy will continue to apply but only in respect of any act, error or omission committed or alleged to have been committed prior to the effective date of the consolidation, merger or acquisition.

16. **New subsidiaries**

If **you** create an entity during the **period of the policy** cover is automatically extended under this Policy to include the entity as a **subsidiary** for 45 days.

**We** will consider providing cover for the created entity after the period of 45 days if:

a. **you** give **us** full details of the entity within 45 days of its creation; and
b. **you** accept any amendment to the terms and conditions of this Policy and agree to pay any additional **premium** required by **us**.

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In the event **you** do not comply with a. and b. above, cover will automatically terminate for the entity 45 days after the date of its creation.

Cover for any created entity is only provided under this Policy for any act, error or omission committed or alleged to have been committed on or after the date of its creation.

No cover will be automatically provided under this Policy for any created entity whose business activities are materially different from **your** business activities.

17. **Our rights of recovery**

If **we** make any payment under this Policy and **you** have any right of recovery against a **third party** in respect of this payment, then **we** will maintain this right of recovery. **You** will do whatever is reasonably necessary to secure this right and will not do anything after the event which gave rise to the claim to prejudice this right.

**We** will not exercise any rights of recovery against any **employee**, unless this is in respect of any fraudulent or dishonest acts or omissions as proven by final adjudication, arbitral tribunal or written admission by the **employee**.

Any recoveries will be applied as follows:

a. towards any recovery expenses incurred by **us**;
b. then to **us** up to the amount of **our** payment under this Policy, including **costs and expenses**;
c. then to **you** as recovery of **your deductible**.

18. **Prior subsidiaries**

Should an entity cease to be a **subsidiary** after the **inception date**, cover in respect of the entity will continue as if it was still a **subsidiary** during the **period of the policy**, but only in respect of an act, error, omission or event occurring prior to the date that it ceased to be a **subsidiary**.

19. **Process for paying privacy breach notification costs**

Any **privacy breach** notification transmitted by **you** or on **your** behalf must be done with **our** prior written consent. **We** will ensure that notification is compliant with any legal or regulatory requirements and contractual obligations and transmitted using the most cost effective means permissible under the governing law. No offer must be made for financial incentives, gifts, coupons, credits or services unless with **our** prior written consent which will only be provided if the offer is commensurate with the risk of harm.

**We** will not be liable for any portion of the costs **you** incur under **INSURING CLAUSE 3** (**SECTION E** only) that exceed the costs that **you** would have incurred had **you** gained **our** prior written consent. In the absence of **our** prior written consent **we** will only be liable to pay

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**you** the equivalent cost of a notification made using the most cost effective means permissible under the governing law.

If a **senior executive officer** becomes aware that a **client** has suffered a **privacy breach**, **you** and **we** agree that **you** will:

a. endeavor as much as is reasonably practicable that any **privacy breach** notification transmitted by or on behalf of **your client** is compliant with any legal or regulatory requirements and contractual obligations and transmitted using the most cost effective means permissible under the governing law; and
b. fully comply with **CONDITION 1**.

20. **Waiver of subrogation**

Notwithstanding **CONDITION 17**, **we** agree to waive **our** rights of recovery against any **third party** if, prior to the claim or incident which **you** reasonably expected to give rise to a claim, **you** entered into a contract that contains a provision requiring **you** to do this.

21. **Sanctions suspension**

It is a condition under this Policy that the provision of cover, the payment of any claim and the provision of any benefit will be suspended, to the extent that the provision of the cover, payment of the claim or provision of the benefit would expose **us** to any sanction, prohibition or restriction under the United Nations resolutions or the trade or economic sanctions, laws or regulations of Australia, Canada, the European Union, United Kingdom or United States of America. The suspension will continue until such time **we** would no longer be exposed to the sanction, prohibition or restriction.

22. **Choice of law, jurisdiction and service of suit**

In the event of a dispute between **you** and **us** regarding this Policy, the dispute will be governed by the laws of the State of the United States of America shown as the choice of law stated in the Declarations page. **We** agree, at **your** request, to submit to the jurisdiction of a court of competent jurisdiction within the United States of America.

Nothing in this Condition constitutes or should be understood to constitute a waiver of **our** rights to commence an action in any court of competent jurisdiction in the United States of America, to move an action to a United States District Court, or to seek a transfer of a case to another court as permitted by the laws of the United States of America or the laws of any State of the United States of America.

It is further agreed that service of process in such suit may be made upon the representative stated in the Declarations page and that in any suit instituted against **us**, **we** will abide by the final decision of such court or of any appellate court in the event of an appeal. The representative stated in the Declarations page is authorized and directed to accept service of

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process on **our** behalf in any such suit and, at **your** request, to give a written undertaking to **you** that they will enter a general appearance on **our** behalf in the event such suit is instituted.

Additionally, in accordance with the statute of any state, territory or district of the United States which makes such a provision, **we** hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as **our** true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by **you** arising out of this Policy. The representative stated in the Declarations page is hereby designated as the person to whom the above mentioned officer is authorized to mail such process or a copy thereof.

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# Cyber security tools for tech firms

We believe that CFC's tech policy should work for you from day one. Take a few minutes to learn about the free cyber security tools that sit seamlessly alongside your policy.

Through our award-winning app, *Response*, you'll get access to a variety of proactive cyber cyber security tools and services including:

### Real-time threat alerts

We proactively monitor our customer base and analyse the latest cyber claims. If we spot a problem specific to your business, we'll reach out to directly via the app with guidance on how to rectify any issues.

### Phishing simulations

Targeting members of your team whose credentials are the most vulnerable, these simulations send mock phishing emails in order to raise awareness of this criminal tactic.

### Dark web monitoring

This tool scours the dark web for information relating to your business to ensures customers credentials aren't in the wrong hands.

### Deep scanning

This service actively scans the external network footprint to identify potential threats and vulnerabilities within an insureds network.

### Cybersecurity advice

Get in touch with our global cyber security team for expert technical support.

Outside of the app, our tech policyholders also benefit from the following:

### Legal contract publishing tool

We have teamed with LawDepot to provide you access to a publishing tool which will empower you to generate custom legal documents, contracts and forms.

### Contract best practices guidebook

Our easy-to-read guidance sheet will help you negotiate your way through the legal minefield of contracts in the tech industry.

To take advantage of these tools, please email us at tech@cfc.com

Simply use your **CFC policy number** to register.

Search "CFC Response" to download the app onto your Apple or Android device.

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Registered Office: 85 Gracechurch Street, London EC3V 0AA VAT Number: 135541330

*This document is provided as a matter of information only, please review the policy wording for full details*

| | SUMMARY OF AMENDMENTS |
|---|---|
| **PREAMBLE** | Amended to confirm that as an added benefit to the Policy, proactive cyber attack prevention services are provided to **you**.<br><br>New defined terms of **operator error** and **system failure** have replaced **technology error** to remove duplication. |
| **INSURING CLAUSES** | |
| **INSURING CLAUSE 1: PROFESSIONAL LIABILITY** | |
| SECTION D: INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT AND MEDIA LIABILITY | Title amended to clarify cover provided.<br>Part a. amended to include a clarification that breach of **intellectual property rights** license is only covered where the insured acted in good faith. |
| **INSURING CLAUSE 2: NETWORK SECURITY & PRIVACY LIABILITY** | |
| SECTION C: MANAGEMENT LIABILITY | The Section has been amended to clarify intent and include specific reference to **your** Chief Information Security Officer, Chief Information Officer, Chief Technology Officer or their functional equivalents. |
| SECTION D: REGULATORY FINES, PENALTIES AND INVESTIGATION COSTS | This Section was previously called 'REGULATORY FINES' and has been renamed to reflect scope of cover. |
| SECTION F: CONTINGENT BODILY INJURY | This new Section provides liability cover for any **claim** arising out of **bodily injury** caused as a direct result of a **cyber event** affecting **your computer systems** (provided **you** are not entitled to indemnity under any other insurance, except for any additional sum which is payable over and above the other insurance). |
| **INSURING CLAUSE 3: CYBER INCIDENT RESPONSE** | |
| SECTION E: PRIVACY BREACH MANAGEMENT COSTS | Part a. amended to clarify intent regarding any **privacy breach** notification to you are not legally obliged to make. |
| SECTION F: THIRD PARTY PRIVACY BREACH MANAGEMENT COSTS | Final paragraph updated to amend language from "provided that **you** have contractually indemnified the **third party**" to "provided that **you** are contractually required to indemnify the **third party**" to clarify intent. |
| SECTION G: POST BREACH REMEDIATION COSTS | The Section has been amended to reflect scope of cover, noting this Section will apply to all coverages under INSURING CLAUSE 3 and to reflect **claim manager** definition. |
| **INSURING CLAUSE 4: CYBER CRIME** | |
| SECTION A: FUNDS TRANSFER FRAUD | This Section has been amended to clarify intent, referencing the "**company's**" funds or money as opposed to "**your**" funds or money. |
| SECTION B: INVOICE MANIPULATION | This is a new cover to reimburse **you** for **loss** as a direct result of theft committed by a **third party** of a **client's** money or other financial assets that the **client** intended to send to **you** for the provision of goods and services, but which **you** did not receive as a result of fraudulent electronic communications designed to impersonate a **senior executive officer** or **employee**. |
| SECTION C: NEW VENDOR FRAUD | This is a new cover to reimburse **you** for **loss** as a direct result of a fraudulent **third party** posing as a legitimate vendor of goods or services with whom **you** are transacting for the first time, resulting in **you** paying for goods or services that **you** did not receive. |
| SECTION D: PHYSICAL GOODS FRAUD | This is a new cover to reimburse **you** for **loss** as a direct result of a **third party** committing any phishing, vishing or other social engineering attack against an **employee** or **senior executive officer** that results in **you** sending the **company's** tangible property or goods to an unintended party. However, this Section will not cover **loss** as a result of a legitimate customer not paying or refusing to pay for tangible property or goods that **you** have sent. |
| SECTION F: CORPORATE IDENTITY THEFT | Previously titled 'PUSH PAYMENT FRAUD', this Section has been amended to clarify intent, including a clearer list of examples for what the Section covers. |
| SECTION G: THEFT OF FUNDS HELD | Previously SECTION B, this Section has been amended to clarify that the bank |

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| IN ESCROW | account needs to be held in **your** name and to affirmatively cover social engineering attacks committed by a **third party** against **you**. |
| SECTION H: THEFT OF CLIENT FUNDS | This is a new Section to reimburse you for loss as a direct result of you having to reimburse a client for theft of the client's money or other financial assets from a client's bank account that you had access to, provided that the theft was as a result of a social engineering attack committed against you by a third party. |
| SECTION I: CUSTOMER PAYMENT FRAUD | Previously SECTION F and titled 'PUSH PAYMENT FRAUD', this Section has been renamed and amended to clarify intent. |
| SECTION J: TELEPHONE HACKING | Previously SECTION E. |
| SECTION K: UNAUTHORISED USE OF COMPUTER RESOURCES | Previously SECTION G. |
| REMOVED SECTIONS: | EXTORTION (now included as a standalone INSURING CLAUSE). |
| **INSURING CLAUSE 5: CYBER EXTORTION** | This cover is now included as a standalone INSURING CLAUSE. This cover has been amended to reflect intent that **we** will pay on behalf of the **company** any ransom in response to an extortion demand made against **you**, as well as the reasonable and necessary costs incurred to respond to the extortion demand. |
| **INSURING CLAUSE 6: SYSTEM DAMAGE AND BUSINESS INTERRUPTION** | Previously INSURING CLAUSE 5. |
| SECTION B: HARDWARE REPLACEMENT COSTS | Previously Section G, this Section has been amended to clarify intent. A new paragraph has also been added to clarify that **we** will pay the reasonable costs to purchase and install temporary computer hardware or tangible equipment that are necessary in the interim for the sole purpose of facilitating the recovery of **your** data or systems during the remediation phase of the **cyber event**. |
| SECTION C: INCOME LOSS AND EXTRA EXPENSE | Previously SECTION B, this Section has been amended to include **operator error** as a trigger, as well as the new definition **time franchise**. |
| SECTION D: EMERGENCY AND ADDITIONAL OPERATIONAL CONTINUITY COSTS | Previously SECTION C and titled 'ADDITIONAL EXTRA EXPENSE, this Section has been renamed to clarify intent and amended to include **operator error** as a trigger, as well as the new definition **time franchise**. |
| SECTION E: VOLUNTARY AND REGULATORY SHUTDOWN | This is a new cover to reimburse **you** for **income loss** and **increased cost of working** as a result of an interruption to **your** business activities where it was reasonable and necessary for **you** to take **your computer systems** offline to manage a **cyber event** or a where a governmental entity or regulatory body expressly requires **you** to take **your computer systems** offline in response to a **cyber event**. |
| SECTION F: DEPENDENT BUSINESS INTERRUPTION | Previously SECTION D, this Section has been amended to include **operator error** as a trigger, as well as the new definition **time franchise**. |
| SECTION H: LOST OR MISSED BIDS | This is a new cover to reimburse **you** for **your income loss** sustained during the **reputational harm period** as a result of **your** failure to make or win a bid or request for proposal for a contract arising directly from a **cyber event**. |
| SECTION I: CLAIM PREPARATION COSTS | The Section has been amended to reflect scope of cover and clarify intent, noting this Section will apply to all coverages under INSURING CLAUSE 6 and to reflect **claims manager** definition. |
| **INSURING CLAUSE 7: COMMERCIAL GENERAL LIABILITY** | Previously INSURING CLAUSE 6. |
| SECTION D: POLLUTION LIABILITY | This Section has been amended to remove the exclusion for **your technology services**. |
| **INSURING CLAUSE 8: LOSS MITIGATION** | Previously INSURING CLAUSE 8. |
| **INSURING CLAUSE 9: CRIMINAL REWARD COVER** | This is a new Insuring Clause which provides cover for amounts payable to a person or organization (except for the auditor of the **company** or manager or supervisor of such auditor) for providing information which directly contributes to and results in the arrest and conviction of a threat actor who is committing or has committed any illegal act directly relating to a claim covered under INSURING CLAUSES 2, 3, 4, 5 or 6. |
| **HOW MUCH WE WILL PAY** | Language updated to clarify how **your** limits will operate, noting that the **limit of liability** and the **incident response limit** are provided as separate limits. |
| **YOUR DEDUCTIBLE** | Language updated to reflect updated intent that the **deductible** will operate on |

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| | a single aggregate basis across INSURING CLAUSE 1 – 6 and 9 and is the maximum amount **you** will be liable to pay for all claims under INSURING CLAUSE 1 – 6 and 9. The application of the **time franchise** has also been included. |

## DEFINITIONS

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| **New Definitions** | The following Definitions have been added:<br>**"Aggregate deductible"**<br>**"Incident response limit"**<br>**"Operator error"**<br>**"Time franchise"** (replaces the definition of "waiting period") |
| **Amended Definitions** | The following Definitions have been amended:<br>**"Claim"**<br>Updated to include clarification that cease and desist notices and lawsuits seeking non-monetary relief will be considered **claims**.<br>**"Cyber event"**<br>Updated to reference an attack that utilizes artificial intelligence and actions of a rogue **employee**<br>**"Cyber incident response line"**<br>Updated from "hotline" to "line"<br>**"Income loss"**<br>Updated to include **operator error** as a trigger.<br>**"Indemnity period"**<br>Updated to clarify operation for dependent business interruption.<br>**"Intellectual property rights"**<br>Updated to include cover for trade names.<br>**"System failure"**<br>Updated to reflect structural changes.<br>**"Technology services"**<br>Updated to include reference to artificial intelligence. |
| **Deleted Definitions** | The following Definitions have been deleted:<br>**"Cyber incident manager"** (replaced by **claims managers** definition)<br>**"Waiting period"** (replaced by **time franchise** definition)<br>"**Technology error"** (now split out as **system failure** and **operator error**) |

## EXCLUSIONS

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| **Amended Exclusions** | The following Exclusions have been amended:<br>**Antitrust**<br>Updated to remove reference to writeback for specific cover under INSURING CLAUSES 2, 3, 4 or 5.<br>**Bodily injury**<br>Updated to reflect structural changes and new cover<br>**Collection of private data without consent**<br>Updated to include failure to obtain consent and specify personally identifiable information.<br>**Core infrastructure failure**<br>Renamed to reflect scope and amended to incorporate infrastructure failures beyond the internet, such as power and utilities.<br>**Known claims and circumstances**<br>Updated to reflect new coverage triggers.<br>**Property damage**<br>Updated to reflect structural changes and new cover.<br>**Website and application content accessibility** |

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| | Updated to include reference to applications<br><br>Exclusions updated to reflect structural changes:<br>**Advertising injury**<br>**Auto**<br>**Betterment**<br>**Breach of contract**<br>**Intellectual property rights and defamation**<br>**Misleading advertising**<br>**Personal injury**<br>**Pollution**<br>**Products liability**<br>**Property perils**<br>**Retroactive date**<br>**War and cyber war** |
| **Deleted Exclusions** | The following Exclusions have been deleted:<br>**Business interruption liability**<br>**Contractual cancellation**<br>**Domain name suspension or revocation**<br>**Property and hardware costs**<br>**Power and utility failure** (incorporated into **Core infrastructure failure** Exclusion)<br>**Regular hours staff costs**<br>**Trade name** |
| **CONDITIONS** | |
| **New Conditions** | The following Conditions have been added:<br>**Run-Off cover**<br>Separated out from the **Mergers and Acquisitions** condition to clarify operation. |
| **Amended Conditions** | The following Conditions have been amended:<br>**What you must do if an incident takes place**<br>In addition to structural changes and reference to **claims manager**, this Condition has been updated as follows:<br>- New part c. added, requiring **you** not to incur any costs or promise to make any payment without our prior written consent (which will not be unreasonably withheld) in respect of INSURING CLAUSE 5.<br>- New part e. added to ensure information and assistance is provided to **us** in a timely manner.<br>- Clarification that costs to respond to an extortion demand are not included in the costs that can be incurred without our consent in the first 72 hours.<br>**Extended reporting period**<br>Amended to reflect structural changes and reference **operator error**.<br>**Optional extended reporting period**<br>Amended to clarify how the optional extended reporting period applies to different coverage parts, as well as reference **operator error**.<br>**Mergers and acquisitions**<br>Updated to clarify how the condition operates and separate out **Run-off cover** which is included in a new condition.<br>**Process for paying privacy breach notification costs**<br>Updated to include clarify the notifications will be by the most cost effective method possible.<br><br>Conditions updated to reflect structural changes<br>**Calculation of business interruption losses**<br>**Cross liability and severability** |

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| | **Dispute Resolution** |
| | **Maintenance of employee automobile liability insurance** |
| | **Waiver of subrogation** |